

THE DECLARATION'S JUDICIARY

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Two hundred and fifty years ago American colonists once again aired their grievances against the British Crown—this time declaring independence and offering a theory of government. Three of their grievances related to colonial judiciaries. The colonists objected to the King overriding colonial legislation governing the scope of judicial power; to the King's claim to the power to remove judges from their posts and to withhold their salaries; and to parliamentary acts limiting the scope of civil juries by expanding admiralty jurisdiction.

Those grievances reflected early American conceptions of the proper role for the judiciary. Various parts of the Constitution might be understood to address these concerns: Article III established a coequal, third branch of government that exclusively maintains the “judicial Power of the United States”; the same Article guarantees judges life tenure and undiminished salary; and the Seventh Amendment enshrines the right to a civil jury trial. In tandem, the Declaration and the Constitution paint a picture of the early American judiciary: an independent, neutral arbiter, yet reliant on the legislature for resources and substantive law and on the executive to enforce judgments, all the while accountable ultimately to the people through juries, appointments, and impeachment.

In time, however, the judiciary developed into a more-powerful yet sometimes more-deferential judiciary, with its accountability coming from very different sources. A recent wave of federal-court formalism suggests that the Supreme Court might be unwinding some of these modifications, seeking instead a return to the Framers' design. Exploring the foundation of early American thought on the question reveals the path of the formalist project and helps us evaluate whether the current iteration of the federal judiciary or the old (which may become the new again) is more normatively desirable for our twenty-first-century republic.

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INTRODUCTION

This year commemorates the two hundred and fiftieth anniversary of the signing of the Declaration of Independence. On July 4, 1776, the Second Continental Congress voted to approve the final draft of the Declaration, and fifty-six of the delegates signed the Declaration.¹ The colonists had long held and expressed objections to how Parliament and King George III were governing the colonies,² but the Declaration was different on two fronts: First, rather than requesting changes, it declared independence; and second, it offered a theory of government that guided the nation far beyond the Declaration or even the Revolutionary War.³ The act of declaring independence was certainly significant—we celebrate our independence in July and identify the start of our nation in 1776 (instead of, say, September of 1783 at the Treaty of Paris⁴)—but it is the concepts Thomas Jefferson embedded in the Declaration that form the fabric of our country rather than the day we celebrate Independence Day or the year we put on t-shirts.

Much has been written about the political theory articulated in the Declaration—including at this wonderful symposium—by those much more qualified than I,⁵ so I hope to cover slightly different ground here. After declaring independence and setting forth the theory of government that justified it, Thomas Jefferson enumerated the colonists' grievances that formed the factual basis for breaking off from Great Britain. Among grievances objecting to the Crown's interference with colonial self-rule and refusal to protect the colonies from Parliament, Jefferson listed several grievances that related to colonial judiciaries. I will focus on three here⁶: First, the colonists objected that the King had “made Judges dependent on his Will alone, for

1 THE DECLARATION OF INDEPENDENCE (U.S. 1776).

2 See, e.g., DECLARATION OF RIGHTS AND GRIEVANCES (1765), reprinted by Yale L. Sch.: Avalon Project, https://avalon.law.yale.edu/18th_century/resolu65.asp [<https://perma.cc/8HRA-6W9N>]; DECLARATION AND RESOLVES OF THE FIRST CONTINENTAL CONGRESS (1774), reprinted by Yale L. Sch.: Avalon Project, https://avalon.law.yale.edu/18th_century/resolves.asp [<https://perma.cc/U3GA-YJY2>].

3 See, e.g., Abraham Lincoln, President of the U.S., The Gettysburg Address (Nov. 19, 1863) (“Four score and seven years ago our fathers brought forth upon this continent, a new nation, conceived in Liberty, and dedicated to the proposition that all men are created equal.”), in 7 THE COLLECTED WORKS OF ABRAHAM LINCOLN 17, 21 (Roy P. Basler et al. eds., 1953).

4 Definitive Treaty of Peace Between the United States of America and His Britannic Majesty (Treaty of Paris), U.S.-Gr. Brit., Sep. 3, 1783, 8 Stat. 80.

5 See generally, e.g., Dan Himmelfarb, *The Constitutional Relevance of the Second Sentence of the Declaration of Independence*, 100 YALE L.J. 169 (1990); Darrell A.H. Miller, *Continuity and the Declaration of Independence*, 89 S. CAL. L. REV. 601 (2016).

6 At least two other grievances are related to the judiciary—that the King had protected royal troops “by a mock Trial, from punishment for any Murders” of colonists and that colonists were “transport[ed] . . . beyond Seas to be tried for pretended offenses.” THE DECLARATION OF INDEPENDENCE paras. 17, 21 (U.S. 1776). For a brief discussion on those two grievances, see *infra* note 213.

the tenure of their offices, and the amount and payment of their salaries.”⁷ Second, the Crown had “obstructed the Administration of Justice, by refusing his Assent to Laws for establishing Judiciary powers.”⁸ And third, they asserted that he had wrongly “giv[en] his Assent to . . . Acts of pretended Legislation” that “depriv[ed] [them] in many cases, of the benefits of Trial by Jury.”⁹

These three objections to the operation of the pre-Revolutionary colonial judicial system give some insight into how those who wrote and signed the Declaration envisioned an ideal judiciary. By objecting to the King’s soft power over judges, the colonists suggested that judges should be independent from political will, that they should be neutral, sitting between government and the people rather than on the government’s side.¹⁰ By objecting to the failure in legislative process that left one colony largely without a judiciary, the colonists admitted that the judiciary is dependent on the political branches and has no independent power. But paired with that dependence was an obligation on those same political branches to respect and support the judiciary, those branches being answerable to the people for failure to do so.¹¹ And finally, by objecting to the restriction on the trial by jury, the colonists offered a theory of accountability that was derived directly from the people rather than (indirectly) by the people through the political branches (although there are such measures as well).¹²

Each of these characteristics of the ideal colonial judiciary featured in the Declaration—*independence*, *dependence*, and *accountability*—were later reflected in the Constitution of 1787. The Constitution established a third, coequal branch of government for the judiciary and protected its members by life tenure.¹³ The Framers separated out the legislative and executive powers such that Congress and the President could as a general rule not exercise the judicial power and the judiciary could not exercise their respective powers, either.¹⁴ At the same time, they intertwined the branches by, among

7 THE DECLARATION OF INDEPENDENCE para. 11 (U.S. 1776).

8 *Id.* para. 10.

9 *Id.* paras. 15, 20. The framing of this objection reflects the Declaration’s general approach of objecting to the Crown (not Parliament) because a sizable portion of colonists viewed the Crown (and not Parliament) as the only legitimate British authority over the colonies. See ERIC NELSON, *THE ROYALIST REVOLUTION: MONARCHY AND THE AMERICAN FOUNDING* 64–65 (2014). King George refused the revolutionaries’ request to assert the prerogative power over the colonies and push out Parliament; thus, the two sides disagreed about the legitimacy of the King executing parliamentary acts (“Acts of *pretended* Legislation” (emphasis added)) purporting to govern the colonies. See *id.* at 65, 63–65 (quoting THE DECLARATION OF INDEPENDENCE para. 15 (U.S. 1776)).

10 See *infra* Part I.

11 See *infra* Part II.

12 See *infra* Part III.

13 See U.S. CONST. art. III, § 1.

14 Compare *id.*, with *id.* art. I, § 1, and *id.* art. II, § 1, cl. 1; see also NEIL M. GORSUCH WITH JANE NITZE & DAVID FEDER, *A REPUBLIC, IF YOU CAN KEEP IT* 59–74 (2019).

other things, giving the President, with advice and consent of the Senate, the power to appoint judges, and giving the House of Representatives and the Senate the power to impeach and remove those same judges.¹⁵ Shortly after ratification, the Bill of Rights itself ensured that the political branches could not deprive any person of life, liberty, or property without due process of law—i.e., a judicial process.¹⁶ And the Seventh Amendment protected the right to a civil jury trial.¹⁷

The combination of these provisions, together with the backdrop against which they were enacted, paints a very similar picture of the judiciary to the one painted by the Declaration. The judiciary was constitutionally *independent* from the political branches and electoral pressures. Judges and judges alone were given judicial power, allowing them to resolve cases and controversies without undue influence by the legislature or executive—indeed, giving the judiciary the power to question the legitimacy of acts by the other branches of government. But in turn, the judicial power gave federal courts no power to make law, define their own jurisdiction, raise or spend revenue, or execute their own judgments. On those fronts, the judiciary was *dependent*. As Alexander Hamilton explained, the judiciary was the “least dangerous” branch in the sense that it had no power over the “sword” nor the “purse.”¹⁸ Instead, it was incumbent on Congress to establish the substantive law and jurisdiction of the courts, as well to provide the courts with the resources to carry out the judicial power. And it was necessary for the administration of justice that the executive enforce judicial judgments, effectuate judicial processes, and provide judges the protection of the laws. For these things, the legislature and executive had a duty vis-à-vis the judiciary. *Accountability* came elsewhere. Judges were accountable to the people indirectly through the other branches in limited ways—appointment by political actors and the possibility of impeachment—but one direct measure of accountability was the jury. By requiring juries to exercise the judgment of applying external law to preexisting facts, the Founders limited judges’ ability to shape the legal rights and obligations of the parties, at least in those cases in which juries were required.

To be sure, any connection from the Declaration (let alone inferences drawn from the Declaration) and the Constitution is tenuous. The Framers had gained experience under the Articles of Confederation in the post-Revolutionary states.¹⁹ I take no position on whether there was a consistent throughline of thought or theory from the Declaration to Article III (and later the Seventh Amendment). So, too, I adopt no view about the proper role of

15 U.S. CONST. art. I, § 2, cl. 5; *id.* art. I, § 3, cls. 6–7; *id.* art. II, § 2, cl. 2; *id.* art. II, § 4.

16 *Id.* amend. V.

17 *Id.* amend. VII.

18 THE FEDERALIST NO. 78, at 465 (Alexander Hamilton) (Clinton Rossiter ed., 1961).

19 See GORDON S. WOOD, POWER AND LIBERTY: CONSTITUTIONALISM IN THE AMERICAN REVOLUTION 74–79 (2021).

the Declaration of Independence in our law today or in interpreting the Constitution.²⁰ Whether the Declaration is a source of fundamental law, whether we should understand the Constitution's provisions—including those concerning the judiciary—through the lens of the Declaration, or whether the Declaration is irrelevant to our law and Constitution because the 1787 Constitution stands on its own and departs from the ideals of the Declaration, makes little difference here. The independence, dependence, and accountability of the judiciary are reflected in both the grievances of the Declaration and in the relevant constitutional provisions. In honor of the Declaration's anniversary, it is worth acknowledging today that, no matter the legal mechanism, the original understanding of the Article III judiciary was shaped by the ideals implicit in the Declaration.

Despite the Founders' conception of the judiciary, the judiciary has, for much of recent history, looked much different from the one I sketch here. Instead of robust independence, judges are often expected to conform to some degree to popular sentiment and defer to the political branches and even state governments. The judiciary's dependence is under attack from both sides—on one hand, the judiciary exercises its own lawmaking power and defines its own jurisdiction, and, on the other hand, Congress and the executive do not always fulfill their obligations to support and defend the judiciary. And finally, the civil jury right has become increasingly unimportant and uninvoked, the appointment process has become more partisan (even if it has always been political), and calls for impeachment are generally disingenuous.

20 The role of the Declaration in constitutional interpretation and the pantheon of American law more generally is the subject of debate, but I take no position on that relationship here. Compare, e.g., Frank I. Michelman, *The Ghost of the Declaration Present: The Legal Force of the Declaration of Independence Regarding Acts of Congress*, 89 S. CAL. L. REV. 575 (2016), Lee J. Strang, *Originalism, the Declaration of Independence, and the Constitution: A Unique Role in Constitutional Interpretation?*, 111 PENN. ST. L. REV. 413 (2006), Lee J. Strang, *The Declaration of Independence: No Special Role in Constitutional Interpretation*, 42 HARV. J.L. & PUB. POL'Y 43 (2019), and Charles H. Cosgrove, *The Declaration of Independence in Constitutional Interpretation: A Selective History and Analysis*, 32 U. RICH. L. REV. 107 (1997), with Patrick J. Charles, *Restoring "Life, Liberty, and the Pursuit of Happiness" in Our Constitutional Jurisprudence: An Exercise in Legal History*, 20 WM. & MARY BILL RTS. J. 457 (2011), Alexander Tsesis, *Self-Government and the Declaration of Independence*, 97 CORNELL L. REV. 693 (2012), Alexander Tsesis, *Maxim Constitutionalism: Liberal Equality for the Common Good*, 91 TEX. L. REV. 1609 (2013), Alexander Tsesis, *The Declaration of Independence and Constitutional Interpretation*, 89 S. CAL. L. REV. 369 (2016), and Scott D. Gerber, *Liberal Originalism: The Declaration of Independence and Constitutional Interpretation*, 63 CLEV. ST. L. REV. 1 (2014). See generally Frederick Schauer, *Why the Declaration of Independence Is Not Law—and Why It Could Be*, 89 S. CAL. L. REV. 619 (2016). For a more general argument against using broader political theories (possibly including those reflected in the Declaration) to understand the Constitution, see Christopher S. Havasy, Joshua C. Macey & Brian Richardson, *Against Political Theory in Constitutional Interpretation*, 76 VAND. L. REV. 899 (2023).

But the Supreme Court, slowly over the course of several decades and rapidly within the last few years, has shown an appetite for an outwardly originalist version of federal-courts formalism²¹ that generally (although not perfectly) maps onto this older conception of the judiciary. By better understanding that older view, those who study the Court and formalist judges themselves can better understand the nature of this originalist project, what work might remain to be done, and whether such a revolutionary return is normatively desirable in our current political climate.

I divide my discussion in three Parts, each highlighting one of the features of the Declaration's judiciary (which later became features of the Constitution's judiciary)—independence, dependence, and accountability. Each Part discusses the pre-Declaration state of English and colonial American law, the colonists' objections, the Constitution's answer to those objections, and the relationship between modern judicial doctrine and this older conception of the judiciary. I then close with some thoughts about the normative effect of the turn to formalism and originalism in federal courts on the judiciary and our federalist system of government more generally.

I. THE JUDICIARY'S INDEPENDENCE

Sometimes the layman's story of the American judiciary's independence relies on an exaggerated view of the English judiciary's lack of independence. Centuries before the American Founding, English courts were true agents of the Crown.²² The King's (or Queen's) Bench was aptly named because the judges sat in place of the King, to do the King's will.²³ The role of the Chancellor furthers the point. When the common law became more rigid, the Chancellor retained the power in equity to pursue the King's justice outside of the common law.²⁴ Both sides of the judicial system, common law and equity, worked as agents of the Crown.²⁵

21 By federal-courts formalism, I intend to refer to the growing efforts to conceptualize and apply federal-courts doctrines as distinct and discoverable legal concepts that exist beyond their normative desirability. Cf. Jeffrey A. Pojanowski, *Faces of Formalism*, 112 VA. L. REV. 95, 104 (2026).

22 See FRANK J. GOODNOW, *THE PRINCIPLES OF THE ADMINISTRATIVE LAW OF THE UNITED STATES* 420 (1905) (“[M]ost important officers discharged functions in both [the executive and judicial] branches, and all alike were regarded as merely the servants of the Crown.”).

23 See Tyler B. Lindley, *The Law of Certiorari*, 94 U. CHI. L. REV. (forthcoming 2027) (manuscript at 13–14), <https://ssrn.com/abstract=6502259> [<https://perma.cc/PJ4T-WQFL>].

24 See Tyler B. Lindley, *Interpretive Lawmaking*, 111 VA. L. REV. 253, 274 & n.98 (2025).

25 See Beau J. Baumann & Jed Handelsman Shugerman, *Quasi-Judicial: A History and Tradition*, 127 COLUM. L. REV. (forthcoming 2027) (manuscript at 19), https://scholarship.law.bu.edu/faculty_scholarship/4159 [<https://perma.cc/V6UK-MHVV>] (“[J]udges’ offices were considered extensions of the Crown.”). Further underscoring the point, judicial officers were subject to the prerogative writs, which were writs brought by private parties on behalf of the King alleging that the King’s servants were disobeying the King or traversing the boundaries of their power. See Lindley, *supra* note 23 (manuscript at 12).

That relationship changed, however, through various events in English history. Parliament asserted supremacy and became “jealous of all that look[ed] like an attempt to legislate,”²⁶ confining courts to applying preexisting law rather than more broadly pursuing the Crown’s agenda.²⁷ Even further, the Crown acquiesced in judicial independence in the Act of Settlement of 1701, agreeing to maintain judges’ salaries and not to remove judges except by agreement of both houses of Parliament.²⁸ By the 1700s, then, the English judiciary was in a real sense independent from the Crown and Parliament, even if it was still lodged as a formal matter within the executive.

But that independence was limited. For one, there were no structural protections ensuring this independence. Instead, a new statute could remove the independence if the political tides changed. To be sure, any interference would likely have been met with opposition and dissatisfaction from the populace, but it was legally possible for ordinary legislation to wrest back control over judges.²⁹ For another, this independence held true only for Great Britain itself, not the colonies.³⁰ So, even though Englishmen in England enjoyed the fruits of judicial independence, the American colonists experienced the downside of monarchical meddling.

Although colonial judges were not guaranteed tenure and compensation like their English counterparts, they had long enjoyed *de facto* independence from the Crown through their dependence on colonial legislatures.³¹ However, in the decades leading up to the Declaration, the Crown undermined colonial judicial independence on both fronts. Colonial legislation that sought to protect the colonies’ judges from removal by the Crown was disallowed by the Privy Council.³² Even though the Crown had not established a pattern of removing judges, the colonists viewed his insistence on control over judges’ offices skeptically.³³ Why else would the Crown oppose the

26 F.W. MAITLAND, *THE FORMS OF ACTION AT COMMON LAW: A COURSE OF LECTURES* 6 (A.H. Chaytor & W.J. Whittaker eds., 1962).

27 See Lindley, *supra* note 24, at 274–75, 281.

28 See Act of Settlement 1701, 12 & 13 Will. 3 c. 2, § 3 (Eng.). The necessary parliamentary resolution was referred to as an “Address,” *id.*, but it functioned similarly to the American form of constitutional impeachment. The primary difference was that the joint address merely gave the Crown permission to remove the judge, whereas impeachment and removal is sufficient alone to remove judges.

29 See Cuthbert W. Pound, *The Judicial Power*, 35 HARV. L. REV. 787, 790 (1922).

30 See ARTHUR T. VANDERBILT, *JUDGES AND JURORS: THEIR FUNCTIONS, QUALIFICATIONS AND SELECTION* 17–18, 21 (1956).

31 See SCOTT DOUGLAS GERBER, *A DISTINCT JUDICIAL POWER: THE ORIGINS OF AN INDEPENDENT JUDICIARY, 1606–1787*, at 83 (2011).

32 See GEORGE A. WASHBURN, *IMPERIAL CONTROL OF THE ADMINISTRATION OF JUSTICE IN THE THIRTEEN AMERICAN COLONIES, 1684–1776*, at 179–80 (1923) (recounting the acts of Pennsylvania and North Carolina). For more on disallowance, see *infra* Part II.

33 See WASHBURN, *supra* note 32, at 178–79 (The colonists argued “that the methods used in the reign of King James to make the judges countenance his arbitrary proceedings and the abuses

same tenure protections that his judges in Great Britain enjoyed unless he wanted to exert his influence? Similarly, supported by Parliament, the Crown began setting and paying the salary for colonial judges.³⁴ The colonists arguably took more offense to this arrangement. In Massachusetts, the legislature impeached a judge who accepted payment from the Crown (as opposed to the colonial legislature).³⁵ But the Royal Governor refused to remove the judge.³⁶

When the Crown reasserted control over colonial judges, the colonists viewed it as an affront to their rights as Englishmen. The colonists considered themselves to be under the protection of the Crown.³⁷ For him to interfere with judges further exacerbated the objections they had to King George's treatment of the colonies. The King was supposed to protect the colonists from parliamentary interference.³⁸ Not only was he failing in that regard, but he was also misusing his own power against the interests of his subjects. Englishmen in England enjoyed the benefit of a neutral judiciary, so the colonists should be entitled to one as well. And a judiciary removable by the Crown, with no entitlement to pay except through the grace of that same Crown, was far from the kind of neutral arbiters to which the colonists believed they were entitled. "He has made Judges dependent on his Will alone, for the tenure of their offices, and the amount and payment of their salaries."³⁹

Several features of the Constitution changed the nature of judicial independence, addressing at least in part these shortcomings in the English model. First, the Constitution protected independence by making structural and putting beyond ordinary legislation much of what the English judiciary enjoyed only contingently. In Article III, the Constitution established the judiciary as an independent, third branch of government equal in stature to that of the legislative and executive branches.⁴⁰

that followed upon it showed . . . the necessity of putting it out of the power of the government to displace any judge but for official misbehavior.").

34 See GERBER, *supra* note 31, at 83.

35 See *id.* at 83; Mellen Chamberlain, *The Revolution Impending*, in 6 NARRATIVE AND CRITICAL HISTORY OF AMERICA 1, 95 (Justin Winsor ed., 1887).

36 GERBER, *supra* note 31, at 84.

37 See NELSON, *supra* note 9, at 46.

38 See *id.*

39 THE DECLARATION OF INDEPENDENCE para. 11 (U.S. 1776).

40 See U.S. CONST. art. III, § 1; see also Sam J. Ervin, Jr., *Separation of Powers: Judicial Independence*, L. & CONTEMP. PROBS., Winter 1970, at 108, 114 ("From their own colonial experience and from their state constitutions, [the founders] had learned the importance of incorporating the doctrine in the governing documents in order to assure the fair administration of justice.").

In the Constitution, the judiciary was set out as an equal, third part of the government.⁴¹ Although Montesquieu had identified the powers of government as either legislative, executive, or judicial power,⁴² Montesquieu lauded England,⁴³ in which the judiciary was, as Locke noted, under the umbrella of the Crown.⁴⁴ Moreover, Montesquieu's political theory on this front was paper thin, leaving many questions for the Framers in dislodging the judiciary from the executive altogether.⁴⁵ This structural innovation⁴⁶ protected against the kind of meddling to which the colonists so clearly objected.

Second, the Constitution backed the judiciary's structural independence with judicial job protection.⁴⁷ Even the separation of the judiciary into its own branch would have been ineffective if the judiciary nonetheless remained dependent on the executive and legislature for pay and a continued office. Article I gave Congress the (arguably nondelegable⁴⁸) power of the purse,⁴⁹ and Article II gave the President the (arguably exclusive⁵⁰) power to execute the laws,⁵¹ leaving the judiciary with neither. As Alexander Hamilton explained, the judiciary has "no influence over either the sword or the purse."⁵²

41 Blackstone had emphasized the necessity of an independent judicial power, *see* 1 WILLIAM BLACKSTONE, COMMENTARIES *260, but formal structural separation in the form embodied by the Constitution was virtually unknown.

42 *See* MONTESQUIEU, THE SPIRIT OF THE LAWS 157–58 (Anne M. Cohler et al. eds. & transs., 1989) (1748).

43 *See* Nikolas Bowie & Daphna Renan, *The Separation-of-Powers Counterrevolution*, 131 YALE L.J. 2020, 2034 (2022); Havasy et al., *supra* note 20, at 923.

44 *See* Bruce Ackerman, *Good-Bye, Montesquieu*, in COMPARATIVE ADMINISTRATIVE LAW 38, 38 (Susan Rose-Ackerman et al. eds., 2d ed. 2017); Havasy et al., *supra* note 20, at 920; *see also* Jed Handelsman Shugerman, *Venality: A Strangely Practical History of Unremovable Offices and Limited Executive Power*, 100 NOTRE DAME L. REV. 213, 234 (2024).

45 *See generally* Jeremy Waldron, *Separation of Powers in Thought and Practice?*, 54 B.C. L. REV. 433 (2013) (explaining the difficulties in operationalizing the paper-thin political theory of the pre-constitutional and Founding-era thinkers). Even Montesquieu himself seemed to discount the judicial power. *See* MONTESQUIEU, *supra* note 41, at 160 ("Among the three powers of which we have spoken, that of judging is in some fashion, null."). For an argument that the political theory at the Founding was too contradictory to rely on and that it does not map perfectly onto the Constitution, *see generally* Havasy et al., *supra* note 20.

46 *Cf.* Shugerman, *supra* note 44, at 231 ("The Framers were among the innovators separating 'judicial power' from 'executive power.'").

47 *See* U.S. CONST. art. III, § 1.

48 *See* CFPB v. Cmty. Fin. Servs. Ass'n of Am., 144 S. Ct. 1474, 1486–88 (2024) ("To be sure, the Appropriations Clause presupposes Congress'[s] powers over the purse.>").

49 *See* U.S. CONST. art. I, § 9, cl. 7.

50 *See* Seila L. LLC v. CFPB, 140 S. Ct. 2183, 2191 (2020) ("Under our Constitution, the 'executive Power'—all of it—is 'vested in a President'" (quoting U.S. CONST. art. II, § 1, cl. 1)). *But see* Trump v. Cook, No. 25A312 (U.S. June 29, 2026) (recognizing an exception for the Federal Reserve).

51 U.S. CONST. art. II, § 3.

52 THE FEDERALIST NO. 78, *supra* note 18, at 465 (Alexander Hamilton).

Without money for salaries or force to enforce its judgments, the judiciary would have been just as dependent as the King's colonial judges if not for further protections,⁵³ so the Constitution provided some. "The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office."⁵⁴ Again, as a practical matter, this arrangement was not such a large departure from late-eighteenth-century English practice, but it imposed, in written constitutional text, an express limitation on the political branches' control over the judiciary not subject to alteration by ordinary legislation.⁵⁵ Thus, the Constitution sought to prevent future abuses through the same formal mechanisms that had preexisted the Declaration but failed to fully protect colonial judiciaries.⁵⁶

The Framers appear to also have been concerned about informal control over the judiciary by the political branches. Not only are the Constitution's judges assured of their salaries and positions in an independent third branch, they take their own separate oath directly to the Constitution. "[A]ll . . . judicial Officers, both of the United States and of the several States, shall be bound by Oath or Affirmation, to support this Constitution"⁵⁷ And federal judges have been required to take a separate statutory oath since 1789, which similarly asks judges to swear that they "will faithfully and impartially discharge and perform all the [applicable] duties . . . [under] the constitution and laws of the United States."⁵⁸

Chief Justice Marshall early in the Republic recognized that this oath made no room for complete deference to the legislative branch. In *Marbury v. Madison*, Chief Justice Marshall addressed the argument that the newly established judiciary should blindly accept the constitutionality of congress-

53 For an examination of the areas on which the judiciary remained dependent on the political branches under the Constitution, see *infra* Part II.

54 U.S. CONST. art. III, § 1.

55 This provision was widely supported and appeared in all the major constitutional proposals. See VANDERBILT, *supra* note 30, at 21–22. A strong majority of the original states and the newly admitted states also granted their judges life tenure. See *id.* at 22 (eight out of the thirteen colonies (with one having only a mandatory retirement age) and eight out of the eleven newly admitted states). "For several decades it was generally accepted . . . that tenure in office during good behavior was essential to an independent judiciary" *Id.* But by the middle of the nineteenth century, the pendulum swung back to political control, and most states held judicial elections with tenure subject to reelection. See LAWRENCE M. FRIEDMAN, A HISTORY OF AMERICAN LAW 371 (2d ed. 1985). See also generally Jed Handelsman Shugerman, *Economic Crisis and the Rise of Judicial Elections and Judicial Review*, 123 HARV. L. REV. 1061 (2010).

56 Perhaps counterintuitively, Article III and its accompanying protections were not provided to territorial courts—presenting the same kind of problem to which the colonists themselves had objected. See VANDERBILT, *supra* note 30, at 23 n.82.

57 U.S. CONST. art VI, cl. 3; see 5 U.S.C. § 3331 (2018).

58 Judiciary Act of 1789, ch. 20, § 8, 1 Stat. 73, 76 (codified as amended at 28 U.S.C. § 453 (2018)).

sional statutes.⁵⁹ If Congress had enacted a statute, then its implicit determination that the statute was consistent with the Constitution should arguably be conclusive. The legislature was the primary representative of the people, and if the people themselves were sovereign—a fundamental tenet underlying the American experiment⁶⁰—then it is unclear why judges should, purportedly on behalf of the same people who elected the legislature, interfere. But judicial review rejected such conclusive legislative deference.⁶¹ The Constitution stands beyond ordinary legislation.⁶² And because the judicial oath requires judicial fealty to the Constitution, anything less would violate that oath.⁶³

Although complete deference was off the table, judges did not go at judicial review alone. Early instances of judicial review suggest that judges were hesitant to hold a legislative act unconstitutional unless there was a square conflict between the Constitution and the act. The presumption of constitutionality, the canon and doctrine of constitutional avoidance, and the rule of clear error or clear incompatibility all minimized the number of direct judicial-legislative conflicts.⁶⁴ The strength of these avoidance doctrines is subject to debate,⁶⁵ but they all existed to some degree.⁶⁶ The essential distinction between those noncontroversial means of deference and the kind of deference Chief Justice Marshall called a crime was that the former were according to law while the latter abdicated the law. For this reason, one might be skeptical of arguments for or against deference that forgo legal rules in favor of political theory or law and economics.⁶⁷

Marbury also addressed the role of the judiciary vis-à-vis the executive. Chief Justice Marshall considered whether a writ of mandamus could lie against executive officials.⁶⁸ The prerogative writs (of which mandamus was one) did not quite fit well with the new structure of government.⁶⁹ If manda-

⁵⁹ See *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 179 (1803).

⁶⁰ See Jud Campbell, *Republicanism and Natural Rights at the Founding*, 32 CONST. COMMENT. 85, 89–90 (2017).

⁶¹ See Pound, *supra* note 29, at 790–91.

⁶² *Marbury*, 5 U.S. (1 Cranch) at 178.

⁶³ See *id.* at 180 (“If such be the real state of things, this is worse than solemn mockery. To prescribe, or to take this oath, becomes equally a crime.”); see also William Baude, *Marbury Now*, LIBERTIES (Winter 2026), <https://libertiesjournal.com/articles/the-marburynow/> [https://perma.cc/6JPH-49C3].

⁶⁴ See Derek A. Webb, *The Lost History of Judicial Restraint*, 100 NOTRE DAME L. REV. 289, 303–10 (2024).

⁶⁵ See *id.* at 295–98 (surveying the field of views).

⁶⁶ See *id.* at 303–10.

⁶⁷ For a survey of some such late-nineteenth- and early-twentieth-century arguments, see Vicki C. Jackson, Thayer, Holmes, Brandeis: *Conceptions of Judicial Review, Factfinding, and Proportionality*, 130 HARV. L. REV. 2348, 2348–2359 (2017).

⁶⁸ See *Marbury*, 5 U.S. (1 Cranch) at 162–65.

⁶⁹ Cf. 4 THE DOCUMENTARY HISTORY OF THE SUPREME COURT OF THE UNITED STATES, 1789–1800, at 112 (Maeva Marcus et al. eds., 1992) (discussing the stalemate in Congress about in

mus had been an action on behalf of the English Crown, on whose behalf would a mandamus in the United States be brought? The judiciary was no longer an arm of the Crown, so an order commanding an executive officer to perform a certain act created some tension in the separation of powers. Yet Chief Justice Marshall characteristically threaded the needle on this issue as well. He rejected that mandamus would never lie against the Secretary of State, as an executive cabinet official, but reasoned that some of the Secretary's acts might not be reviewable.⁷⁰ Although discretionary acts taken as agents to carry out the President's constitutional duties might not be examinable in court, the Secretary of State's performance of specific, legislatively imposed duties was as reviewable as any others' act.⁷¹ The individual-rights-vindication aspect of the prerogative writs had prevailed over the executive-supervision aspect. This reimagination of the prerogative writs was described decades later by one learned American scholar: "[F]rom the nature of our system of government," the writ of mandamus had come "to be regarded as much in the nature of an ordinary action between the parties."⁷²

Finally, one of the first amendments to the Constitution reinforced the judiciary's independence from the executive. The Fifth Amendment states that "[n]o person shall be . . . deprived of life, liberty, or property, without due process of law."⁷³ It is not clear whether the Due Process Clause provides any check on the legislature's power to enact substantive laws.⁷⁴ Among those answering yes, the broader view is known as substantive due process, famously (or perhaps infamously) invoked in *Dred Scott v. Sandford*, *Meyer v. Nebraska*, *Pierce v. Society of Sisters*, *Griswold v. Connecticut*, and *Roe v. Wade*, to name just a few.⁷⁵ A version of the narrower view

whose name process should issue from federal courts and the Supreme Court's determination that it should issue in the name of the President).

70 See *Marbury*, 5 U.S. (1 Cranch) at 164–65 ("It follows then that [judicial review] . . . must always depend on the nature of th[e] act."). It is in arriving at this conclusion that Chief Justice Marshall relied on the frequently misinterpreted argument that for every wrong there is a remedy. See *id.* at 163–64. But he clearly states that it "is not to be questioned" that there are cases in which an "injured individual has no remedy." *Id.* at 164; see also Tyler B. Lindley, *Remedial Limits, Constitutional Adjudications, and the Balance of Powers*, 58 WAKE FOREST L. REV. 655, 697–98, 697 n.232 (2023).

71 See *Marbury*, 5 U.S. (1 Cranch) at 165–66.

72 JAMES L. HIGH, A TREATISE ON EXTRAORDINARY LEGAL REMEDIES, EMBRACING MANDAMUS, QUO WARRANTO AND PROHIBITION ch. I, §§ 3–5, at 6–9 (Chi., Callaghan & Co. 3d ed. 1896).

73 U.S. CONST. amend. V.

74 See *Timbs v. Indiana*, 139 S. Ct. 682, 691 (2019) (Gorsuch, J., concurring).

75 See, e.g., *Dred Scott v. Sandford*, 60 U.S. (19 How.) 393, 450 (1857), superseded by constitutional amendment, U.S. CONST. amend. XIV; *Meyer v. Nebraska*, 262 U.S. 390, 399–400 (1923); *Pierce v. Soc'y of Sisters*, 268 U.S. 510, 534–35 (1925); *Griswold v. Connecticut*, 381 U.S. 479, 481–83 (1965); *Roe v. Wade*, 410 U.S. 113, 164 (1973), overruled by *Dobbs v. Jackson Women's Health Org.*, 142 S. Ct. 2228 (2022).

has recently been articulated by Randy Barnett and Evan Bernick.⁷⁶ For them, some extreme legislative actions—such as those taking property from one person and giving it to another—are not legislative action and thus cannot reasonably be called “law.”⁷⁷ Proceedings based on such a non-law, therefore, cannot be according to due process “of law.”⁷⁸

Putting aside questions about the outer edges of the Due Process Clause, it surely defangs the executive vis-à-vis the judiciary. To be sure, the principles undergirding the Due Process Clause existed before they were enshrined in the Constitution in 1791,⁷⁹ but its placement among the few enumerated rights selected to be in the Bill of Rights highlights its importance.⁸⁰ The primary operation of the Due Process Clause is to guarantee certain procedures before the executive can deprive any person of life, liberty, and property.⁸¹ These requirements hamper the executive’s ability to kill or detain any “person,” or take private property without the process that is due by law.⁸² And as a practical matter, the process that is due is often judicial, making it a bulwark between the executive and the individual.⁸³

In fact, Justice Gorsuch has recently developed an argument that the Due Process Clause itself funnels disputes to Article III judges.⁸⁴ On this view, judicial process by an independent judge is one of the nonnegotiable processes with which the executive must comply before depriving persons of life, liberty, or property.⁸⁵ At the federal level, that judge must exist within the Article III framework, with life tenure and undiminishable salary.⁸⁶ Irrespective of (or perhaps in conjunction with) whether Article III itself funnels

76 See RANDY E. BARNETT & EVAN D. BERNICK, *THE ORIGINAL MEANING OF THE FOURTEENTH AMENDMENT: ITS LETTER AND SPIRIT* 261–315 (2021).

77 See *id.* at 261–78.

78 See *id.* at 269–72; U.S. CONST. amends. V, XIV.

79 See Max Crema & Lawrence B. Solum, *The Original Meaning of “Due Process of Law” in the Fifth Amendment*, 108 VA. L. REV. 447, 467–509 (2022); Jud Campbell, *Determining Rights*, 138 HARV. L. REV. 921, 941 (2025); Gary Lawson, *Take the Fifth . . . Please!: The Original Insignificance of the Fifth Amendment’s Due Process of Law Clause*, 2017 BYU L. REV. 611, 630–31.

80 See Campbell, *supra* note 79, at 962 (“Most importantly, [James Madison] emphasized how a written declaration of rights would help shape public opinion, thus facilitating the political protection of rights.”).

81 See U.S. CONST. amend. V.

82 *Id.*

83 See *SEC v. Jarkesy*, 144 S. Ct. 2117, 2145 (2024) (Gorsuch, J., concurring) (“[D]ue process often meant *judicial* process.” (citing 1 WILLIAM BLACKSTONE, *COMMENTARIES* app., note D, at 358 (St. George Tucker ed., Phila., William Young Birch & Abraham Small 1803) (1765))). The Due Process Clause is also commonly understood to have placed a “baseline” on the process that is due such that Congress cannot “mak[e] any process ‘due process of law,’ by its mere will.” *Id.* (quoting *Murray’s Lessee v. Hoboken Land & Improvement Co.*, 59 U.S. (18 How.) 272, 276 (1856)).

84 See *id.* at 2144–46.

85 See *id.*

86 See *id.* at 2143–44; see also U.S. CONST. art. III, § 1.

disputes into Article III courts, the Due Process Clause might do so if an Article III process is due.⁸⁷

The modern judiciary faces similar threats to its independence as the colonial and early American judiciaries did to theirs.⁸⁸ To be sure, there are relatively few attacks on the judiciary's formal independence. Some seek to put term limits on federal judges, deny that life tenure exists, and abstract the requirements of life tenure so high that Congress could reassign Justices off the Supreme Court.⁸⁹ But these reimaginings of judicial independence are still relatively obscure.⁹⁰

Attacks on the functional independence of the judiciary, however, come from both sides. An artificially enhanced view of legislative deference subjects judges to the kind of control from the legislative branch that is inconsistent with the judiciary's constitutional independence. The qualifier "artificially enhanced," here, is, of course, doing substantial work. I take no view on the degree of deference allowed (or required) by the Constitution, as there is some historical support for the presumption of constitutionality and the doctrine of clear error.⁹¹ But neither approach affects the power and duty of the judiciary to say what the law is. Rather, they target the uncertainty of applying facts—even legal facts—to law. For example, is chartering a bank necessary and proper to carry out the power to regulate commerce and coin money?⁹² Chief Justice Marshall interpreted the Necessary and Proper Clause without any deference to Congress's or the executive's express or implied interpretation.⁹³ He concluded that if Congress's "end [was] legitimate" and "within the scope of the Constitution," its means need merely be "appropriate, . . . plainly adapted to [the legitimate] end," or "not prohibited but consist[ent] with the letter and spirit of the Constitution."⁹⁴ But in the application of facts to law—in determining whether the corporate charter

87 For a similar mode of analysis linking the Due Process Clause and Article III, see William Baude, *Adjudication Outside Article III*, 133 HARV. L. REV. 1511, 1541–42 (2020).

88 For an insightful examination of the contingent nature of judicial independence, see Tara Leigh Grove, *The Origins (and Fragility) of Judicial Independence*, 71 VAND. L. REV. 465 (2018).

89 For a sampling of these arguments, see David R. Dow & Sanat Mehta, *Does Eliminating Life Tenure for Article III Judges Require a Constitutional Amendment?*, 16 DUKE J. CONST. L. & PUB. POL'Y 89 (2021); U.S. SUP. CT. WORKING GRP., AM. ACAD. OF ARTS & SCI., THE CASE FOR SUPREME COURT TERM LIMITS (2023); PRESIDENTIAL COMM'N ON THE SUP. CT. OF THE U.S., FINAL REPORT 111–45 (2021); and Philip D. Oliver, *Assessing and Addressing the Problems Caused by Life Tenure on the Supreme Court*, 13 J. APP. PRAC. & PROCESS 11 (2012); see also William J. Watkins, Jr., *Rethinking Absolute Judicial Independence*, INDEP. INST. (June 4, 2025), <https://www.independent.org/article/2025/06/04/rethinking-judicial-independence/> [https://perma.cc/VE7H-TNTQ].

90 See PRESIDENTIAL COMM'N ON THE SUP. CT. OF THE U.S., *supra* note 89, at 130–40.

91 See Webb, *supra* note 64, at 303–10.

92 See *M'Culloch v. Maryland*, 17 U.S. (4 Wheat.) 316, 413 (1819).

93 See *id.* at 414–21.

94 *Id.* at 421.

was appropriate—Chief Justice Marshall gave weight to Congress’s determination that the charter was an appropriate means.⁹⁵

Further, historically grounded concepts of deference likely do not justify deference to executive agencies’ interpretations of statutes, either mandated by Congress or rationalized by normative arguments for agency expertise.⁹⁶ The Court recently rejected the decades-long experiment with agency deference,⁹⁷ but not without a vigorous dissent,⁹⁸ as well as political and legislative outcry about the judiciary exercising independent judgment.⁹⁹ Congress might be able to resurrect a form of *Chevron* by imposing a litigation burden on individuals seeking to disturb agency action. But it might not be able to displace *Loper Bright*-style de novo review when agencies seek to deprive individuals of their life, liberty, or property, which would trigger the Due Process Clause’s requirement of a neutral arbiter.

Another attack comes from those who rue the judiciary’s independence not from the political branches per se but instead the electorate more generally.¹⁰⁰ Perhaps this view is most famously associated with Justice Brennan, who argued that modern morals should be relevant to a judge’s constitutional interpretation.¹⁰¹ For Justice Brennan, the judiciary’s role is to discover what

95 *Id.* at 421–24; *see also id.* at 423 (“[T]he degree of [the charter’s] necessity . . . is to be discussed in another place.”).

96 *See Chevron U.S.A. Inc. v. Nat. Res. Def. Council, Inc.*, 467 U.S. 837, 865–66 (1984), *overruled by Loper Bright Enters. v. Raimondo*, 144 S. Ct. 2244 (2024). Similar issues might well arise when deferring to agencies’ interpretations of their own regulations. *See Bowles v. Seminole Rock & Sand Co.*, 325 U.S. 410 (1945); *Auer v. Robbins*, 519 U.S. 452, 461 (1997); *Kisor v. Wilkie*, 139 S. Ct. 2400, 2413 (2019).

97 *See Loper Bright*, 144 S. Ct. at 2273.

98 *See id.* at 2294–95 (Kagan, J., dissenting).

99 *See, e.g., Ian Millhiser, The Supreme Court Just Made a Massive Power Grab It Will Come to Regret*, VOX (June 28, 2024, 15:20 EDT), <https://www.vox.com/scotus/357900/supreme-court-loper-bright-raimondo-chevron-power-grab> [<https://perma.cc/3JP6-MN6U>]; Cary Coglianese & David B. Froomkin, *Loper Bright’s Disingenuity*, 174 U. PA. L. REV. 91 (2025); Anthony G. Amsterdam & James S. Liebman, *Loper Bright and the Great Writ*, 56 COLUM. HUM. RTS. L. REV. 54 (2025).

100 *E.g., Barry Friedman, The Coming Storm over the Supreme Court*, N.Y. TIMES (Oct. 8, 2018), <https://www.nytimes.com/2018/10/08/opinion/kavanaugh-supreme-court-conservative.html?searchResultPosition=1> [<https://perma.cc/GP9C-W9XP>] (“Historically, when big collisions between public opinion and the Supreme Court have occurred, the justices lose and the public gets its way.”).

101 *See William J. Brennan Jr., Assoc. Just., U.S. Sup. Ct., Address at the Georgetown University Text and Teaching Symposium* (Oct. 12, 1985), in 19 U.C. DAVIS L. REV. 2, 6–7, 11 (1985). To be sure, Justice Brennan did not argue for an identity between modern views and constitutional meaning. *See id.* at 6 (“It is the very purpose of a Constitution—and particularly of the Bill of Rights—to declare certain values transcendent, beyond the reach of temporary political majorities.”). In fact, he acknowledged that his views on the unconstitutionality of the death penalty were unpopular (and still are, *see Death Penalty*, GALLUP, <https://news.gallup.com/poll/1606/death-penalty.aspx> [<https://perma.cc/NN2K-VMZY>] (last visited Feb. 3, 2026)), yet he reasoned that the death penalty was so inconsistent with the meaning of the Eighth Amendment that he was “bound . . . to expose the departure and point toward a different path.” *See Brennan, supra*, at 13–

“the words of the text mean in our time,” using “substantive value choices” to “apply [constitutional principles] to modern circumstances.”¹⁰² Other modern scholars have argued that judges should largely stay out of the business of constitutional or statutory adjudication, leaving those decisions to the more democratically legitimate legislative and executive branches.¹⁰³ Even without formal, conscious deference, courts might forsake their independence in favor of a temporary legitimacy grab in response to overt pressure from the political branches.¹⁰⁴ That trade is no better than trading a birthright for a bowl of pottage.¹⁰⁵

But perhaps the most pernicious attempt to undermine true judicial independence is from some judges, scholars, politicians, and commentators attacking judicial decisions on nonlegal grounds. To be sure, politically charged attacks on the judiciary are nothing new. The Supreme Court has

14. He was not particularly clear in explaining how to reconcile these two ideals. Cf. Andrew B. Coan, *Well, Should They? A Response to If People Would Be Outraged by Their Rulings, Should Judges Care?*, 60 STAN. L. REV. 213, 230–240 (2007) (attempting to reconcile democratic deference and an independent judiciary in the context of the Supreme Court’s evolving-standards-of-decency approach to the Cruel and Unusual Punishments Clause).

102 Brennan, *supra* note 101, at 6–7.

103 See Ryan D. Doerfler & Samuel Moyn, *The Constitution Is Broken and Should Not Be Reclaimed*, N.Y. TIMES (Aug. 19, 2022), <https://www.nytimes.com/2022/08/19/opinion/liberals-constitution.html?searchResultPosition=1> [https://perma.cc/MWM7-C5GC]; Ryan D. Doerfler & Samuel Moyn, *After Courts: Democratizing Statutory Law*, 123 MICH. L. REV. 867 (2025). It is not obvious, to me at least, that an 1871 legislative act, *see* 42 U.S.C. § 1983 (2018), or a 1977 act, *see* Clean Water Act of 1977, Pub. L. No. 95-217, 91 Stat. 1566, is more democratically legitimate than constitutional rules of similar vintage. Rather, accepting Doerfler and Moyn’s approach to democratic legitimacy, it would seem that any assessment of the legitimacy of applying a constitutional or statutory provision would require a case-by-case assessment rather than a mere reference to the process of enactment or the requirements to amend or repeal it.

104 See Tara Leigh Grove, *The Supreme Court’s Legitimacy Dilemma*, 132 HARV. L. REV. 2240, 2255–68 (2019) (reviewing RICHARD H. FALLON, JR., *LAW AND LEGITIMACY IN THE SUPREME COURT* (2018)) (arguing that such a trade-off is not legally legitimate) *But see* Coan, *supra* note 101, at 238–39 (arguing that the Court should at least take public opinion into account as one of many considerations); Gillian E. Metzger, *Considering Legitimacy*, 18 GEO. J.L. & PUB. POL’Y 353, 370–78 (2020) (similar). Several scholars have advanced theories that would allow the Justices to accommodate public opinion without necessarily altering their view of what the law is. *See, e.g.*, Rachel Bayefsky, *Judicial Institutionalism*, 109 CORNELL L. REV. 1297, 1348–79 (2024); Scott Dodson, *The Supreme Court and Public Opinion*, 111 IOWA L. REV. 117, 124–27 (2025). Perhaps the most famous (and original) in this vein was Alexander Bickel, *see* ALEXANDER M. BICKEL, *THE LEAST DANGEROUS BRANCH: THE SUPREME COURT AT THE BAR OF POLITICS* 70–71 (2d ed. 1986), but he was heavily criticized for going too far and requiring accommodation beyond what could be justified by law, *see* Henry Paul Monaghan, *On Avoiding Avoidance, Agenda Control, and Related Matters*, 112 COLUM. L. REV. 665, 714 (2012). Grove, *supra*, at 2265–67.

105 For the reference, *see* Genesis 25:29–34 (King James Version). One might ask how the Court will survive in the long term if it repeatedly fails to “align with . . . mainstream views.” Dodson, *supra* note 104, at 122. Perhaps part of the answer is that the political branches, which do have more democratic legitimacy, should seek to maintain the Court’s legitimacy even when the Court rules against them. *See infra* Part II.

often found itself at odds with a certain political faction or party. The early judiciary through to the Marshall Court was abhorred by the Anti-Federalists and Democratic-Republicans.¹⁰⁶ The Taney Court angered abolitionists and other pro-Union political leaders.¹⁰⁷ The post-Reconstruction Court was criticized for a perceived failure to adequately enforce the Reconstruction Amendments and to respect Congress's power to enforce those Amendments.¹⁰⁸ The *Lochner* Court gave way to the New Deal after significant public pressure from economic populists.¹⁰⁹ The Warren and Burger Courts received pushback for their aggressive decisions in the areas of criminal procedure, substantive due process, and equal protection.¹¹⁰ "Impeach Earl Warren," still echoes through Washington, D.C.¹¹¹ Many of the criticisms then and today are that courts erred by letting policy guide decisions rather than law. That critique seems rather appropriate, indeed traditional. Such accusations were made (with varying persuasiveness) of Chief Justice Marshall in

106 See R. KENT NEWMYER, *JOHN MARSHALL AND THE HEROIC AGE OF THE SUPREME COURT* 146–209 (La. Paperback ed. 2007) (2001).

107 Abraham Lincoln, Speech in Reply to Mr. Douglas, on Kansas, the Dred Scott Decision, and the Utah Question (June 26, 1857), in FRANK CROSBY, *LIFE OF ABRAHAM LINCOLN, SIXTEENTH PRESIDENT OF THE UNITED STATES* 431, 434–41 (Phila., John E. Potter 1865); Frederick Douglass, The Dred Scott Decision: Speech (May 14, 1857), in *TWO SPEECHES, BY FREDERICK DOUGLASS* 25, 27–46 (Rochester, C.P. Dewey 1857).

108 See Sean Beienburg & Benjamin B. Johnson, *Black Popular Constitutionalism and Federalism After the Civil Rights Cases*, 65 ARIZ. L. REV. 579, 598–605 (2023).

109 See Grove, *supra* note 104, at 2255–57 (detailing the causes of the changing jurisprudence of the Court in the New Deal).

110 See, e.g., Richard M. Re, *The Supreme Court, 2024 Term—Foreword: To a Conservative Warren Court*, 139 HARV. L. REV. 1, 11 (2025) ("In its final years, the Warren Court was unpopular, having issued several widely opposed rulings and become a target of Nixon's presidential campaign.").

111 See Brett Bethune, *Influence Without Impeachment: How the Impeach Earl Warren Movement Began, Faltered, but Avoided Irrelevance*, 47 J. S. CT. HIST. 142 (2022).

McCulloch,¹¹² Justice Brown in *Plessy*,¹¹³ Justice Peckham in *Lochner*,¹¹⁴ Justice Blackman in *Roe*,¹¹⁵ and Justice Kennedy in *Obergefell*.¹¹⁶

But some modern critiques are different, or at least more prominent and frequent now. These critiques are not that policy impermissibly infected or overcame law in a judicial decision, but that the Court used the wrong policy. Implicit in that critique is that, if the Court's politics were better, if it were on the right side of the aisle, or if it more openly embraced the politics of judging, then the Court would be legitimate irrespective of the legal correctness of its judgments.¹¹⁷ Of course, one should think critically about the policy implications of law and judicial decisions. Of course, legislators and executives are tasked with considering policy in exercising their core constitutional duties of lawmaking and law execution. And of course, judges, scholars, commentators, politicians, lawyers, and citizens the same should object to policy-over-law judging. But it is not enough to label a decision as wrong because it was infected by politics—even the “wrong” politics. A legally correct decision reached by bad politics is no less legitimate than a legally incorrect decision reached by good ones (and might well be more legitimate). The assumption that the latter is more desirable than the former undermines the independence the Constitution's framers, consistent with the Declaration's drafters, sought to ensure.

112 *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316 (1819); RICHARD E. ELLIS, AGGRESSIVE NATIONALISM: *MCCULLOCH V. MARYLAND* AND THE FOUNDATION OF FEDERAL AUTHORITY IN THE YOUNG REPUBLIC 124–31 (2007).

113 *See Plessy v. Ferguson*, 163 U.S. 537, 562 (1896) (Harlan, J., dissenting) (“The arbitrary separation of citizens, on the basis of race, while they are on a public highway, is a badge of servitude wholly inconsistent with the civil freedom and the equality before the law established by the Constitution. It cannot be justified upon any legal grounds.”), *overruled by* *Brown v. Bd. of Educ.*, 347 U.S. 483 (1954).

114 *See Lochner v. New York*, 198 U.S. 45, 75 (1905) (Holmes, J., dissenting) (“This case is decided upon an economic theory which a large part of the country does not entertain.”).

115 *Roe v. Wade*, 410 U.S. 113 (1973), *overruled by* *Dobbs v. Jackson Women's Health Org.*, 142 S. Ct. 2228 (2022); John Hart Ely, *The Wages of Crying Wolf: A Comment on Roe v. Wade*, 82 YALE L.J. 920, 947 (1973) (“[*Roe v. Wade*] is bad because it is bad constitutional law, or rather because it is *not* constitutional law and gives almost no sense of an obligation to try to be.”).

116 *See Obergefell v. Hodges*, 576 U.S. 644, 687 (2015) (Roberts, C.J., dissenting) (“The majority's decision is an act of will, not legal judgment.”).

117 Interestingly, this critique does not appear to reflect the views of the general populace. Although fifty-six percent of surveyed Americans believe that the Justices are doing a fair or poor job at “keeping their political views out of their decision-making”—including a supermajority (sixty-nine percent) of Democrats and a plurality (forty-seven percent) of Republicans—eighty-six percent agree that “the justices *should not* bring their political views into decision-making,” which is identical between the two political parties. *See* Joseph Copeland, *Favorable Views of Supreme Court Remain near Historic Low*, PEW RSCH. CTR. (Sep. 3, 2025) <https://www.pewresearch.org/short-reads/2025/09/03/favorable-views-of-supreme-court-remain-near-historic-low/> [<https://perma.cc/2ECC-GEEW>].

II. THE JUDICIARY'S DEPENDENCE

Although the Framers shared the colonists' emphasis on an independent judiciary, the ideal judiciary was not a quasi-sovereign institution, either. It, too, was dependent in some ways on the other branches of government. The extent of this dependence can be illustrated by comparing another of the colonists' grievances and the later governmental structure set forth in the Constitution.

With some variation, the Crown retained the power to disapprove colonial legislation.¹¹⁸ In general, this disallowance—operationalized by the Privy Council—would nullify and void a preexisting law.¹¹⁹ However, royal governors were often instructed to refuse their assent to laws that ran counter to whatever instructions the Privy Council gave.¹²⁰ The royal governors could nevertheless assent to legislation that contained a suspending clause providing that the law would not go into effect until the Privy Council approved it.¹²¹ With ex ante and ex post mechanisms to superintend colonial legislative actions, the King effectively controlled the statutory law of the each colony.

Leading up to the 1776 Declaration, this structural arrangement led North Carolina's colonial assembly and its Royal Governor to a standoff.¹²² North Carolina had long authorized foreign attachment, in which courts issued process providing for the attachment of property located in North Carolina's jurisdiction yet owned by someone not subject to domestic service, with the proceeds in the case of a nonappearing defendant to go to the plaintiff rather than the Crown.¹²³ The Board of Trade (a body that operated with the Privy Council) and the Privy Council disapproved of the practice and sent instructions to refuse assent to any law authorizing foreign attachment to royal governors; the North Carolina governor responded with "enthusiasm" that he would follow instructions.¹²⁴ When North Carolina's assembly enacted a law re-establishing their colonial courts, funding them, and giving them jurisdiction, they included in the act a provision again authorizing for-

118 See generally Dudley Odell McGovney, *The British Privy Council's Power to Restrain the Legislatures of Colonial America: Power to Disallow Statutes: Power to Veto*, 94 U. PA. L. REV. 59 (1945).

119 See *id.* at 61 ("[D]isallowance by the Privy Council . . . constituted a repeal, rendering the statute void for the future and not retrospectively void . . .").

120 See *id.* at 71; Charles M. Andrews, *The Royal Disallowance*, in 24 PROCEEDINGS OF THE AMERICAN ANTIQUARIAN SOCIETY 342, 343–44 (1914).

121 See, e.g., McGovney, *supra* note 118, at 71; Ryan C. Williams, *Personal Jurisdiction and the Declaration of Independence*, 75 DUKE L.J. 247, 260–61 (2025).

122 For a compelling recounting of the story, see Williams, *supra* note 121, at 258–71.

123 See *id.* at 253–56 (detailing the development and usefulness of foreign attachment in London and the colonies); *id.* at 258 (detailing North Carolina's long history of authorizing foreign attachment).

124 *Id.* at 258–60.

eign attachment.¹²⁵ North Carolina's governor, in turn, followed his marching orders and refused assent.¹²⁶ Although the governor approved a later bill with foreign attachment but also a suspending clause, no compromise was reached in time.¹²⁷ The colony was left essentially without courts at all for months, while their court system was more generally in chaos for much longer.¹²⁸ North Carolina did manage to establish some limited-jurisdiction courts, but it did not have a "functioning court system" until a new state constitution had been adopted after the Declaration.¹²⁹

Although this episode presents a dispute between the King and North Carolina assembly with the courts playing only an ancillary role, the colonists' response emphasizes the fragility of the judiciary. North Carolina's response was not that judicial establishment should be removed from the legislative process; in fact, its post-independence constitution kept the power in the legislature, which ultimately re-established the court system.¹³⁰ Neither did the colonists turn to the executive to unilaterally establish courts; in fact, when the Royal Governor tried to do so, "locals denied the legitimacy of these new courts," and future Supreme Court Justice James Iredell responded that the Crown did not have the power to "supply any defect which they may imagine."¹³¹ Rather, they presumed that courts were dependent on the combination of the legislature and the executive for their existence, funding, and jurisdiction.¹³² That conclusion might seem trivially true today, but it suggests that the more commonly told story of judicial independence deserves the nuance of judicial dependence.

The Constitution reflects the judiciary's dependence. Article III grants to the judiciary the judicial power,¹³³ but it withholds any executive or legislative power. Such a divide leaves the judiciary dependent on the other branches for its jurisdiction and the substantive law it applies.¹³⁴ And even once the judiciary reaches a judgment within its jurisdiction by applying the external substantive law, federal courts depend on the executive branch to

125 *See id.* at 260.

126 *Id.*

127 *Id.* at 260–61.

128 *See id.* at 261–67 (detailing the difficulties in North Carolina).

129 *Id.* at 267, 276–77.

130 *See id.* at 276.

131 *Id.* at 264 (quoting 1 GRIFFITH J. MCREE, LIFE AND CORRESPONDENCE OF JAMES IREDELL 180 (N.Y.C., D. Appleton & Co. 1857)).

132 *See id.* at 264. To be sure, some did argue that the governors had the "right to erect courts." *See* WASHBURN, *supra* note 32, at 21.

133 U.S. CONST. art. III, § 1.

134 *Cf.* THE FEDERALIST NO. 78, *supra* note 18, at 465 (Alexander Hamilton) ("The legislature not only commands the purse but prescribes the rules by which the duties and rights of every citizen are to be regulated.").

enforce it.¹³⁵ To be sure, unlike the courts in colonial North Carolina, the Supreme Court derives its existence from the Constitution¹³⁶ and might even have some inherent constitutional jurisdiction,¹³⁷ but lower federal courts and the for the most part the Supreme Court are dependent in much similar ways.¹³⁸

The Constitution grants the judiciary no substantive lawmaking power, leaving its jurisdiction and the substance of the law outside its control. The judicial power certainly includes the power to issue judgments to resolve disputes,¹³⁹ as well as the incidental power to “say what the law is.”¹⁴⁰ But it grants no substantive lawmaking power. At the Founding, the judicial power was not understood to have included any lawmaking power.¹⁴¹ Law, including unwritten law like common law and equity, was found by judges but could not be made.¹⁴²

Two potential objections warrant discussion here. First, courts were understood to have had the power to make procedural law.¹⁴³ This narrow kind of procedural law—that which determined internal court processes to reach a judgment and did not apply to other courts¹⁴⁴—was necessary for courts to issue binding judgments. Because it was necessary to effectuate the granted power, the power to make procedural law was seen as inherent in or incidental to the dispute-resolution power.¹⁴⁵ But courts understood that such a power did not extend to substantive law.¹⁴⁶ Second, the legislature could not

135 Such a separation of responsibility brings to mind President Andrew Jackson’s likely apocryphal but illustrative statement in response to a Supreme Court decision: “John Marshall has made his decision, now let him enforce it.” Larry Alexander & Frederick Schauer, *On Extrajudicial Constitutional Interpretation*, 110 HARV. L. REV. 1359, 1364 (1997) (quoting LEONARD BAKER, JOHN MARSHALL: A LIFE IN LAW 745 (1974)).

136 See U.S. CONST. art. III, § 1 (“The judicial Power of the United States, shall be vested in one supreme Court . . .”).

137 See WILLIAM BAUDE, JACK GOLDSMITH, JOHN F. MANNING, JAMES E. PFANDER & AMANDA L. TYLER, HART & WECHSLER’S THE FEDERAL COURTS AND THE FEDERAL SYSTEM 428–31 (8th ed. 2025).

138 See *Sheldon v. Sill*, 49 U.S. (8 How.) 441, 448–49 (1850) (lower courts); *Ex parte McCordle*, 74 U.S. (7 Wall.) 506, 512–14 (1868) (Supreme Court).

139 See William Baude, *The Judgment Power*, 96 GEO. L.J. 1807, 1809 (2008) (arguing that “the judicial power is the power to issue binding judgments”); *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 170 (1803) (“The province of the court is, solely, to decide on the rights of individuals . . .”).

140 *Marbury*, 5 U.S. (1 Cranch) at 177.

141 See Lindley, *supra* note 24, at 277–96.

142 See *id.* at 262–75, 279–81; Micah S. Quigley, *Article III Lawmaking*, 30 GEO. MASON L. REV. 279, 286–305 (2022).

143 See, e.g., *Wayman v. Southard*, 23 U.S. (10 Wheat.) 1, 43–45 (1825).

144 See Amy Coney Barrett, *Procedural Common Law*, 94 VA. L. REV. 813, 884 (2008).

145 See Lindley, *supra* note 24, at 287–88 (exploring whether procedural lawmaking was an incidental or inherent power and explaining why it is ultimately irrelevant to the question of substantive judicial lawmaking).

146 See *id.* at 287.

delegate its own substantive lawmaking power to the courts.¹⁴⁷ There is little support in history for such delegations, and in fact significant evidence suggests the opposite.¹⁴⁸ Judicial lawmaking, congressionally sanctioned or not, poses intractable problems for constitutional structure by asking judges to make law with no neutral arbiter to determine its constitutionality.¹⁴⁹ Moreover, it runs directly counter to the widely shared conception that the rule of law prohibits retrospective liability.¹⁵⁰

Legislative control over the substance of law extended to courts' jurisdiction and to the causes of action authorizing parties to bring suit. To the extent that the jurisdictional question was unclear, the Constitution expressly granted the power to Congress to fashion federal courts' jurisdiction.¹⁵¹ And as Chief Justice Marshall explained, courts had neither power to exceed that legislatively defined jurisdiction nor to deny it.¹⁵² The same was true for causes of action. The legislature was in control of which causes of action courts could recognize, in part because the legislature retained complete control over the forms of proceedings, even when the substantive law governing the cause of action would have come from unwritten law.¹⁵³ A cause of action required a form of proceeding, so the legislature's control over the form of proceeding meant that as a practical matter, the legislature could always negate a cause of action.¹⁵⁴ In fact, one of the first things the First Congress did was affirmatively provide for forms of proceeding for the newly created

147 See *id.* at 291–96.

148 See, e.g., *United States v. Coolidge*, 25 F. Cas. 619, 620 (Story, Circuit Justice, C.C.D. Mass. 1813) (No. 14,857) (explaining that if Congress enacts a statute containing a broad term without a common-law meaning, courts could not supply the meaning themselves, which he called a “despotic power”), *rev'd on other grounds*, 14 U.S. (1 Wheat.) 415 (1816).

149 See Lindley, *supra* note 24, at 291–92.

150 See Allan Beever, *The Declaratory Theory of Law*, 33 OXFORD J. LEGAL STUD. 421, 438–39 (2013) (“The common law . . . entails either that the common law routinely imposes retrospective duties and obligations on individuals in flagrant violation of the rule of law or that the declaratory theory of law is true. . . . It is a dilemma we cannot escape.”); Waldron, *supra* note 45, at 462–63 (explaining that “judicial law-making” presents “difficulties . . . from a separation-of-powers point of view” and “from the point of view of the particular parties before the law-making court, who find in effect that their rights are being determined by new law imposed retroactively upon them”).

151 See U.S. CONST. art. III, §§ 1–2.

152 See *Cohens v. Virginia*, 19 U.S. (6 Wheat.) 264, 404 (1821) (“We have no more right to decline the exercise of jurisdiction which is given, than to usurp that which is not given. The one or the other would be treason to the constitution.”).

153 See Tyler B. Lindley, *Anachronistic Readings of Section 1983*, 75 ALA. L. REV. 897, 943 (2024) (citing MAITLAND, *supra* note 26, at 6) (discussing the English history of Parliament asserting control over the writs issued by Chancery); Anthony J. Bellia Jr., *Justice Scalia, Implied Rights of Action, and Historical Practice*, 92 NOTRE DAME L. REV. 2077, 2100–04 (2017) (arguing that there is good reason to believe that federal courts could not have used preexisting state-law forms of action without congressional sanction).

154 See Bellia, *supra* note 153, at 2091.

federal courts;¹⁵⁵ when Congress did not do the same for criminal laws, the Court held that it was powerless to adjudicate common law crimes.¹⁵⁶ And with some limits, legislatures had broad control even over unwritten substantive law.¹⁵⁷

A word on the scope of the limitation on judicial lawmaking: Drawing the line between making law and explicating, precisifying, and applying preexisting law is a notoriously difficult problem.¹⁵⁸ Added historical complexity arises if one pegs the relevant distinction to the prevailing legal theories and jurisprudential ideas of 1787.¹⁵⁹ Unpacking that distinction completely is not possible here, but a turn away from judicial lawmaking would not necessarily make judges moribund calculators.¹⁶⁰ Nothing in the nature of lawfinding prevents judges from balancing competing considerations, applying standards or principles of morality, or exercising discretion or judgment. It is possible that under some definition any of these actions could be characterized as lawmaking, but it appears very unlikely that these adjudicative methods constituted the kind of judicial lawmaking that the Framers sought to foreclose.¹⁶¹

But if there is a line—or at least if the Framers believed there to be a line¹⁶²—what could be on the other side? At the very least, judges cannot, while exercising their constitutional judicial power, turn to internal will to

155 See Process Act, ch. 21, § 2, 1 Stat. 93, 93–94 (1789); see also Judiciary Act of 1789, ch. 20, § 14, 1 Stat. 73, 81–82.

156 See *United States v. Hudson*, 11 U.S. (7 Cranch) 32, 32–34 (1812).

157 For the power over unwritten law, see Anthony J. Bellia Jr. & Bradford R. Clark, *General Law in Federal Court*, 54 WM & MARY L. REV. 655, 658 (2013). For the limits on legislatures to alter some areas of unwritten law, see William Baude, Jud Campbell, & Stephen E. Sachs, *General Law and the Fourteenth Amendment*, 76 STAN. L. REV. 1185, 1196–99 (2024).

158 See Lindley, *supra* note 24, at 297.

159 See *id.* (“The question whether something is permissible lawfinding or impermissible lawmaking is a historical one.”).

160 See AMY CONEY BARRETT, LISTENING TO THE LAW: REFLECTIONS ON THE COURT AND CONSTITUTION 205–06 (2025) (explaining that even the objective judging Justice Barrett advocates is not like computing a math problem).

161 See Nina Varsava & Bill Watson, *Originalism’s General-Law Turn*, at 14–22 (Univ. of Wis. Legal Stud., Rsch. Paper No. 1899, 2025), <https://ssrn.com/abstract=5906463> [<https://perma.cc/Z365-NXPJ>] (explaining that general law at the Founding required moral reasoning); see also Haley N. Proctor, *Law and Fact in Administration*, 43 YALE J. ON REGUL. (forthcoming 2026) (manuscript at 62–65), <https://ssrn.com/abstract=5392509> [<https://perma.cc/NHS4-658V>] (arguing that law application or judgment does not necessarily itself because law). See generally Haley N. Proctor, *Two Nondelegation Doctrines* (arguing that executive exercise of discretion cannot constitutionally attain the status of law) (unpublished manuscript) (manuscript on file with author). For this reason, Sherif Girgis’s recent argument that some level of moral reasoning is strictly necessary to interpreting, adjudicating, and enforcing certain constitutional rights does not contradict a general prohibition on judicial lawmaking. See generally Sherif Girgis, *Unfinished Liberties, Inevitable Balancing*, 125 COLUM. L. REV. 531 (2025).

162 See Lindley, *supra* note 24, at 262–63 (exploring whether the supposed impossibility of lawfinding would negate the Founders’ imposition of lawfinding on Article III judges).

make or apply new law, whether that will decide the relevant dimension along which to pick a rule, the threshold for distinguishing between which rule applies, or the allowance of exceptions to general rules of law at the judges' open discretion. One might imagine a statute or common-law rule that defines the content of the law that judges find in terms of a judge's own internal will. Perhaps such a rule would be an impermissible circumvention of the antilawmaking rule, but that analysis needs a better underlying theory of the relationship between anticircumvention rules, legal standards, and judicial lawmaking itself, the subject of future work, to be sure.¹⁶³

Even crediting this account, one might wonder why the Framers left the judiciary so dependent after their experiences, especially in North Carolina. The answer appears to be that the political branches themselves had an affirmative obligation to ensure sufficient resources and make effectual the judiciary's judgments.¹⁶⁴ One might think of the arrangement as an exchange: The judiciary stays within its jurisdiction and sticks to resolving disputes based on preexisting law, and the political branches protect the judiciary's independence by providing sufficient resources and enforcing its judgments. In other words, one might understand the colonists' grievances not as an objection to the structure—as it was with violations of judicial independence—but rather to the Crown's violation of its obligation to support the judiciary.¹⁶⁵

This delicate arrangement is under stress today as both sides push the boundaries. Start with the judiciary. Even those Justices (and scholars) who advocate for objective methods of *interpretation* do not necessarily accept

163 In addition to resorting to internal will, to the extent a judge departs from preexisting law, consciously or not, he has effectively applied a new legal rule. Of course, subconscious lawmaking might be less blameworthy and harder to identify, but it is a form of lawmaking all the same.

164 I take no position here on whether these duties are constitutionally based or whether they operate on some subconstitutional or even nonlegal plane. Some, however, have argued that there are constitutional components to both requirements. See Jennifer Mason McAward, *Congress's Power to Block Enforcement of Federal Court Orders*, 93 IOWA L. REV. 1319 (2008) (arguing that Congress is not constitutionally permitted to selectively choose to not fund execution of certain judgments); Baude, *supra* note 139, at 1834–36 (arguing that the executive has a constitutional obligation to enforce all judgments that were issued by a court with jurisdiction but is constitutionally prohibited from enforcing judgments without jurisdiction).

165 One small piece of evidence from the drafting history of the Declaration might indirectly support this understanding. Jefferson's initial draft of the grievance read, "[H]e has suffered the administration of justice totally to cease in some of these states, refusing his assent to laws for establishing judiciary powers." Williams, *supra* note 121, at 274 (emphasis omitted) (quoting Thomas Jefferson, *Rough Draft of the Declaration of Independence* (June 1776), reprinted by LIBR. OF CONG., https://www.loc.gov/resource/mtj1.001_0545_0548/?sp=1&st=single [https://perma.cc/EZ25-6BBN]). The revisions eliminated the narrowing phrase and changed "suffered" to "obstructed," heightening the accusation against the Crown. See *id.* at 274–75. Of course, it could have also been a stylistic change, consistent with the revolutionists' rhetorical flair.

that all methods of *adjudication* must be objective.¹⁶⁶ For example, many originalists and textualists accept the legitimacy of the “construction zone.”¹⁶⁷ To be sure, construction has a variety of definitions,¹⁶⁸ and not all of them require judges to make law.¹⁶⁹ But many of them do.¹⁷⁰ Similarly, many of these same interpreters accept that questions of precedent and stare decisis involve some level of discretion,¹⁷¹ which appears to be unrestrained

166 For an argument that originalism and textualism are not actually objective methods of interpretation, see generally Timothy Sandefur, *Originalism and the Illusions of Objectivity*, 19 N.Y.U. J.L. & LIBERTY 105 (2025).

167 See, e.g., Lawrence B. Solum, *The Fixation Thesis: The Role of Historical Fact in Original Meaning*, 91 NOTRE DAME L. REV. 1, 5 (2015); Randy E. Barnett, *Interpretation and Construction*, 34 HARV. J.L. & PUB. POL’Y 65, 70 (2011); KEITH E. WHITTINGTON, CONSTITUTIONAL CONSTRUCTION: DIVIDED POWERS AND CONSTITUTIONAL MEANING 8–9 (paperback ed. 2001). For a skeptical view of the construction zone, see John O. McGinnis & Michael B. Rappaport, *Original Methods Originalism: A New Theory of Interpretation and the Case Against Construction*, 103 NW. U.L. REV. 751, 783–86 (2009).

168 For a brief survey of some of the different ways the term “construction” is used, see Stephanie Hall Barclay, *The Democratic Deficit of Living Originalism*, 173 U. PA. L. REV. 1965, 1983–88 (2025).

169 See, e.g., William Baude & Stephen E. Sachs, *The Law of Interpretation*, 130 HARV. L. REV. 1079, 1084–85, 1128–32 (2017) (arguing that the law of interpretation can make some kinds of construction “ground[ed] . . . firmly in valid legal rules”). Randy Barnett and Evan Bernick proposed a new method of construction that purports to recognize that “even when the *letter* of the law gives out, the *law* does not.” See Randy E. Barnett & Evan D. Bernick, *The Letter and the Spirit: A Unified Theory of Originalism*, 107 GEO. L.J. 1, 54 (2018). Their approach to construction asks judges to “identify the original functions or spirit of the [ambiguous] provision” and then “[f]ormulate a rule . . . that is (a) consistent with the letter and (b) designed to implement the original functions of” that provision, the general structure, or the Constitution, in that order. *Id.* at 35. The approach is laudable in its attempt to tether the act of construction to external, law-based sources, but it is unclear whether it is the approach that the law requires or that it requires judges to find a particular preexisting rule in the construction process. Indeed, in applying the approach to the Fourteenth Amendment, Barnett and Bernick reason from law and economics to decide which rule is best, a rule they do not consider a “deal breaker.” See BARNETT & BERNICK, *supra* note 76, at 246–50 (discussing a potential time requirement for a widely accepted right to become a privilege or immunity of United States citizenship).

170 See, e.g., Jack M. Balkin, *The Construction of Original Public Meaning*, 31 CONST. COMMENT. 71, 92 (2016) (proposing that, whenever there is not overwhelming agreement on the meaning of a legal text, “all available modalities of argument” are available as “sources of wisdom or insight” with the ultimate decision apparently being to the judge’s open-ended discretion). For a brief survey of the argument that construction allows judges to turn to policy considerations, see Michael Showalter, *The Supreme Court Versus the Construction Zone: The Justices Reject Law-Runs-Out Theory*, 32 GEO. MASON L. REV. F. 49, 51–55 (2025).

171 See *Gamble v. United States*, 139 S. Ct. 1960, 1984, 1986 (2019) (Thomas, J., concurring) (“Federal courts may (but need not) adhere to an incorrect decision as precedent, but only when traditional tools of legal interpretation show that the earlier decision adopted a textually permissible interpretation of the law.”); see also William Baude, *Precedent and Discretion*, 2019 SUP. CT. REV. 313, 321–22 (“Justice Thomas created a space where stare decisis produced discretion instead of constraint.”); cf. John O. McGinnis & Michael B. Rappaport, *Reconciling Originalism and Precedent*, 103 NW. U. L. REV. 803, 836–43 (2009) (proposing an approach to precedent that asks judges

in the problematic sense sketched out above. And a highly discretionary approach to certiorari practice might invite the kind of internal will that raises questions about judicial detachment.¹⁷²

Similarly, despite some objection to judicial lawmaking in interpretation, there is widespread agreement that judges can make common law¹⁷³ and engage in interstitial lawmaking to fill statutory gaps.¹⁷⁴ In these instances, there is not even a pretense to be finding law,¹⁷⁵ rejecting completely the Founding-era conception of judicial power. One might think that skepticism of both practices has motivated the Court to find no preemption where it might have made interstitial law in the past,¹⁷⁶ or to adopt state law or general-law-like rules rather than fashion their own from scratch.¹⁷⁷ But neither practice has completely subsided.

In contrast to the persistence of judicial lawmaking, the Court has reigned back its excess with respect to jurisdiction. The Court has for decades been intensely concerned about exceeding its own jurisdiction, an admirable acknowledgement of its dependence on Congress (and the Constitution). However, perhaps the movement has overcorrected. The heightening of standing bars both generally¹⁷⁸ and in the face of congressional action¹⁷⁹

to balance the costs and benefits of a precedent or decide whether a precedent corrects some democratic flaw in the Constitution).

172 See Lindley, *supra* note 23 (manuscript at 1–7); Baude, *supra* note 171, at 323–24; see also BICKEL, *supra* note 104, at 132 (explaining that the certiorari stage is “where the Court is most a political animal” and arguing that the certiorari process “cannot . . . be principled in the sense in which we have a right to expect adjudications on the merits to be principled”).

173 See, e.g., *Great Lakes Ins. SE v. Raiders Retreat Realty Co.*, 144 S. Ct. 637, 642 (2024) (“Under the Constitution, federal courts possess authority to create and apply maritime law.”); *United States v. Kimbell Foods, Inc.*, 440 U.S. 715, 728 (1979) (“Whether to adopt state law or to fashion a nationwide federal rule is a matter of judicial policy . . .”).

174 *United States v. Little Lake Misere Land Co.*, 412 U.S. 580, 593 (1973) (“[T]he inevitable incompleteness presented by all legislation means that interstitial federal lawmaking is a basic responsibility of the federal courts.”). Interstitial lawmaking could be considered merely a form of federal common law, so the two categories might not be wholly distinct. See *id.* (“[E]ffective Constitutionalism requires recognition of power in the federal courts to declare, as a matter of common law or ‘judicial legislation,’ rules which may be necessary to fill in interstitially or otherwise effectuate the statutory patterns enacted in the large by Congress.” (quoting Paul J. Mishkin, *The Varioussness of “Federal Law”: Competence and Discretion in the Choice of National and State Rules for Decision*, 105 U. PA. L. REV. 797, 800 (1957))); *Sosa v. Alvarez-Machain*, 542 U.S. 692, 726 (2004) (“[T]his Court has thought it was in order to create federal common law rules in interstitial areas of particular federal interest.”).

175 See *Great Lakes Ins.*, 144 S. Ct. at 642 (“[F]ederal courts ‘make decisional law’ for maritime cases.” (quoting *Norfolk S. Ry. Co. v. James N. Kirby, Pty Ltd.*, 543 U.S. 14, 23 (2004))).

176 See, e.g., *O’Melveny & Myers v. FDIC*, 512 U.S. 79, 85–86 (1994); *Rodriguez v. FDIC*, 140 S. Ct. 713, 716–18 (2020).

177 See, e.g., *Empire HealthChoice Assurance, Inc. v. McVeigh*, 547 U.S. 677, 691–93 (2006); see also *Am. Elec. Power Co. v. Connecticut*, 564 U.S. 410, 422 (2011).

178 See *Clapper v. Amnesty Int’l USA*, 568 U.S. 398 (2013).

179 See *TransUnion LLC v. Ramirez*, 141 S. Ct. 2190, 2205 (2021).

are on uncertain historical ground.¹⁸⁰ From the other direction, the Court has continued to enable the continuance of prudential avoidance doctrines such as prudential ripeness, arguably permitting the Court to avoid exercising its jurisdiction.¹⁸¹ And the Court even refuses to exercise its constitutional and statutory jurisdiction in original-jurisdiction cases.¹⁸² Both doctrinal areas arguably give courts the power to shape their own jurisdiction, undermining congressional control.

One jurisdictional area in which the Court has so far continued to embrace all-things-considered moral reasoning—without any indication that it recognizes the tension between its formalism and such open-ended reasoning—is in its certiorari jurisdiction.¹⁸³ The current assumption is that the Justices are free to make certiorari decisions based on practical, policy, and strategic considerations—in sum, that “[n]o law, written or unwritten, dictates which petitions for certiorari the Justices should grant and which they should deny.”¹⁸⁴ First, in defining its jurisdiction by reference to the Justices’ policy calculations, the Court threatens to illicitly exercise the legislative power in an area in which Congress is explicitly given the authority to regulate.¹⁸⁵ And second, there is substantial evidence that Congress never delegated such broad discretion to the Court; rather, it tethered the Court to the unwritten law defining courts’ discretion in choosing whether to issue a writ of certiorari.¹⁸⁶

180 The constitutional status of standing doctrine cannot be fully grappled with here, but for a sampling of the commentary, contrast Robert J. Pushaw, Jr., *The Court Continues to Confuse Standing: The Pitfalls of Faux Article III “Originalism,”* 31 GEO MASON L. REV. 893 (2024), Cass R. Sunstein, *Injury In Fact, Transformed*, 2021 SUP. CT. REV. 349, and William Baude & Samuel L. Bray, *Proper Parties, Proper Relief*, 137 HARV. L. REV. 153 (2023), with Ann Woolhandler & Caleb Nelson, *Does History Defeat Standing Doctrine?*, 102 MICH. L. REV. 689 (2004).

181 See *Susan B. Anthony List*, 573 U.S. at 167 (premitting the question because prudential ripeness was satisfied); *Trump v. New York*, 141 S. Ct. 530, 535–37 (2020) (applying the injury in-fact test of standing and a separate ripeness test). The Court did explain that prudential standing was not a separate bar but rather concerned whether the plaintiffs fell within the statutory cause of action. See *Lexmark Int’l, Inc. v. Static Control Components, Inc.*, 572 U.S. 118, 125–28 (2014). For a sampling of criticism of prudential ripeness, see, for example, *Susan B. Anthony List v. Driehaus*, 573 U.S. 149, 167 (2014) (questioning “the continuing vitality of the prudential ripeness doctrine”); *Indus. Energy Consumers of Am. v. FERC*, 125 F.4th 1156, 1163 (D.C. Cir. 2025) (Henderson, J., concurring) (“Insofar as ripeness traces its lineage to Article III, it has become absorbed by standing. Insofar as ripeness rests on prudential considerations, it infringes on our constitutional duty to adjudicate a proper case or controversy.”).

182 See generally *Arizona v. California*, 140 S. Ct. 684, 685–85 (2020) (Thomas, J., dissenting from denial of motion for leave to file complaint).

183 See Lindley, *supra* note 23 (manuscript at 1–7).

184 Richard H. Fallon, Jr., *Selective Originalism and Judicial Role Morality*, 102 TEX. L. REV. 221, 300 (2023); see also Thomas P. Schmidt, *Agenda Control and Precedent*, 72 UCLA L. REV. 1504, 1527 (2026) (“There are no ‘laws’ controlling the certiorari process beyond what the Court chooses to impose on itself . . .”).

185 See Lindley, *supra* note 23 (manuscript at 41–48); U.S. CONST. art. III, § 2, cl. 2.

186 See Lindley, *supra* note 23 (manuscript at 21–41).

The Court's treatment of implied causes of action, however, presents a more positive story. Although the Court's new test allows previously judge-made causes of action to continue,¹⁸⁷ it essentially prevents courts from recognizing new ones.¹⁸⁸ If the *Alexander v. Sandoval* test is met¹⁸⁹—that is, if Congress has made clear its intent to create a cause of action through statutory text and structure¹⁹⁰—then Congress created the cause of action and not courts.¹⁹¹

The executive and legislature might have also disturbed the equilibrium. The executive simultaneously argues that courts must afford it absolute deference in disputes with private parties,¹⁹² while allegedly defying judicial judgments even when the court has jurisdiction.¹⁹³ But perhaps more importantly, the executive branch appears to have repeatedly fulfilled its duty to physically protect the judiciary with something less than vigor. The Department of Justice chose not to devote adequate resources to investigate and prosecute protestors and threats in the wake of the illicitly leaked *Dobbs* opinion.¹⁹⁴ Congress delayed in providing resources for increased protection

187 See *Jackson v. Birmingham Bd. of Educ.*, 544 U.S. 167, 173–74 (2005); *Medina v. Planned Parenthood S. Atl.*, 145 S. Ct. 2219, 2230 n.1 (2025); see also *Cisco Sys., Inc. v. Doe*, No. 24-856, slip op. at 12 & n.3 (U.S. June 23, 2026).

188 See *FS Credit Opportunities Corp. v. Saba Capital Master Fund, Ltd.*, No. 24-345, slip op. at 3–4 (U.S. June 11, 2026).

189 *Alexander v. Sandoval*, 532 U.S. 275 (2001).

190 *Id.* at 288–89.

191 See *Comcast Corp. v. Nat'l Ass'n of Afr. Am.-Owned Media*, 140 S. Ct. 1009, 1015 (2020); *FS Credit*, slip op. at 4 (“Rather than augmenting statutes, we interpret them. If a statute does not spell out a right of action, we examine the statute’s text and structure to determine whether it implicitly provides one.”).

192 See, e.g., Application to Vacate the Orders Issued by the United States District Court for the District of Columbia and Request for an Immediate Administrative Stay at 31–33, *Trump v. J.G.G.*, 145 S. Ct. 1003 (2025) (No. 24A931); Ian Schwartz, *Stephen Miller Vs. CNN’s Kasie Hunt: “You’re Not Hearing Me and You’re Not Understanding Me. Read the Statute. Alien Enemies Act, 1798.”*, REALCLEAR POL. (Mar. 17, 2025), https://www.realclearpolitics.com/video/2025/03/17/stephen_miller_vs_cnns_kasie_hunt_youre_not_hearing_me_and_youre_not_understanding_me_read_the_statute_alien_enemies_act_1798.html [<https://perma.cc/R2DA-WHY7>]. For a summary of the questions surrounding deference in the immigration and foreign-affairs context, see Rebecca Ingber, *Judicial Deference and Presidential Power Under the Alien Enemies Act*, JUST SEC. (May 20, 2025), <https://www.justsecurity.org/113589/political-question-alien-enemies-act/> [<https://perma.cc/9NXH-LBWF>].

193 See *Order, Juan T.R. v. Noem*, No. 26-CV-0107, 2026 WL 232015, at *1 (D. Minn. Jan. 28, 2026) (asserting that ICE had violated various court orders).

194 For a recounting of the facts surrounding the targeted protests and threats made against the Justices outside their homes and the inaction by the Justice Department due to directions not to enforce federal law, see 18 U.S.C. § 1507 (2018), prohibiting the protestors’ actions, see Letter from Glenn Youngkin, Governor of Va., & Larry Hogan, Governor of Md., to Merrick Garland, Att’y Gen. (May 11, 2022); Letter from Katie Boyd Britt, Sen., to Merrick B. Garland, Att’y Gen. (Jan. 14, 2025); Hadley Arkes, *Merrick Garland’s Refusal to Protect Supreme Court Justices Endangers the Country*, FEDERALIST (May 10, 2023), <https://thefederalist.com/2023/05/10/merrick-garlands-refusal-to-protect-supreme-court-justices-endangers-the-country/>

for the Justices' families due to disputes about who would be covered.¹⁹⁵ When the administration changed, the identity (and ideology) of judges under threat changed but not the executive's nonchalant attitude toward the threats.¹⁹⁶ Although, the judiciary itself might be said to have been complicit in this cavalier treatment when it dramatically reduced the sentence of the person who admitted to trying to kill Justice Kavanaugh (and a plan to kill more "conservative Supreme Court Justices") in the hope of preventing a living majority in *Dobbs*.¹⁹⁷

III. THE JUDICIARY'S ACCOUNTABILITY

The next question is one of accountability. The Framers envisioned the ideal judiciary as independent within its sphere. Yet they also made it dependent on the political branches to define its sphere and the resources to carry out its role. These features were generally consistent from the pre-independence state of affairs in England. Yet, if the legislature and executive were to support the judiciary when it acted within its role, what mechanism was left to hold it accountable for its performance within that sphere?

One avenue of accountability was the jury. The colonists highly valued the role of the jury as a democratic check on the judiciary.¹⁹⁸ As members of the community, the jury legitimated judicial actions in a way that judges, either agents of the Crown or independent and separated from the politic,

[<https://perma.cc/PJV8-Y7FP>]; and Letter from Katie Boyd Britt, Tom Cotton, Ted Cruz & Mike Lee, Sens., to Merrick B Garland, Att'y Gen. (May 3, 2023).

195 See Mycheal Schnell, *House Passes Expanded Security for Supreme Court Justices' Families*, 27 *Democrats Vote 'No,' HILL* (June 14, 2022, 14:53 ET), <https://thehill.com/home-news/house/3522992-house-passes-bill-expanding-security-protections-to-supreme-court-family-members/> [<https://perma.cc/6VBD-MDTJ>].

196 See Carrie Johnson, *Federal Judges Facing Threats After Ruling Against the Trump Administration Speak Out*, NPR (Aug. 4, 2025, 16:11 ET), <https://www.npr.org/2025/08/04/nx-s1-5486757/federal-judges-facing-threats-after-ruling-against-the-trump-administration-speak-out> [<https://perma.cc/RN6E-9Q3V>]. But see UNITED STATES DEP'T OF JUSTICE, Press Release, *Man Pleads Guilty to "Doxxing" Home Address of United States Supreme Court Justice* (May 6, 2026), <https://www.justice.gov/usao-wdnc/pr/man-pleads-guilty-doxxing-home-address-united-states-supreme-court-justice>.

197 See Alexander Mallin, *Justice Brett Kavanaugh's Would-Be Assassin Sentenced to 8 Years Prison*, ABCNEWS (Oct. 3, 2025, 19:33 ET), <https://abcnews.com/US/justice-brett-kavanaughs-assassin-sentenced-8-years-prison/story?id=126197465> [<https://perma.cc/7LVK-6YA2>]; Matthias Schwartz, *Justice Kavanaugh's Would-Be Assassin Sentenced to 8 Years in Prison*, N.Y. TIMES (Oct. 3, 2025), <https://www.nytimes.com/2025/10/03/us/supreme-court-assassination-attempt-sentencing.html> [<https://perma.cc/PNN3-T8KK>].

198 See *Letters from the Federal Farmer (No. 15)*, in 1 THE COMPLETE ANTI-FEDERALIST 315, 320 (Herbert J. Storing ed., 1981) ("Juries are constantly and frequently drawn from the body of the people, . . . and by holding the jury's right to return a general verdict in all cases sacred, we secure to the people at large, their just and rightful controul in the judicial department.").

could not.¹⁹⁹ The jury was a bulwark of liberty, the last line of defense to prevent tyranny.²⁰⁰

This concept of the jury might sound odd to modern ears. To be sure, the jury plays a valuable role even in a legal system in which most cases end before or skip over the jury trial in both criminal and civil matters.²⁰¹ But juries are obligated to follow the law given to them by the judge²⁰² and are presented with only the facts that are subject to reasonable dispute (measured of course by the judge).²⁰³ When the jury reaches a verdict, it must take the facts it found and apply them to the law the judge gave.²⁰⁴ However, if the facts are too clear to present to the jury, it is up to the judges to apply those facts to the law. Thus, although juries do more than find facts, factual findings are the *raison d'être* of the modern jury, with applying the law to those facts as merely a byproduct.²⁰⁵ Moreover, although the law suffers jury nullification and protects nullification verdicts as much as any other verdicts, “no one dare mention it.”²⁰⁶

199 See Jenny Carroll, *The Jury as Democracy*, 66 ALA. L. REV. 825, 831 n.15 (quoting John Adams as saying “the common people [as jurors], should have as complete a control . . . in every judgment of a court of judicature” just as the common people control the other branches (alteration in original) (quoting 2 THE WORKS OF JOHN ADAMS, SECOND PRESIDENT OF THE UNITED STATES 253 (Charles Francis Adams ed., Bos., Charles C. Little & James Brown 1850))); ALEXIS DE TOCQUEVILLE, *DEMOCRACY IN AMERICA* 313 (Arthur Goldhammer trans., Library of America 2004) (1835) (explaining that the jury “places actual control of society in the hands of the governed . . . rather than of the government”).

200 See *Letters from the Federal Farmer (No. 15)*, *supra* note 197, at 320 (“If the conduct of judges shall be severe and arbitrary, and tend to subvert the laws, and change the forms of government, the jury may check them, by deciding against their opinions and determinations, in similar cases.”); 2 THE WORKS OF JOHN ADAMS, SECOND PRESIDENT OF THE UNITED STATES, *supra* note 198, at 253–55 (putting forth a juror’s duty “to find the verdict according to his own best understanding, judgment, and conscience, though in direct opposition to the direction of the court”).

201 See Jeffrey Q. Smith & Grant R. MacQueen, *Going, Going, but Not Quite Gone: Trials Continue to Decline in Federal and State Courts. Does It Matter?*, 101 JUDICATURE 26, 28 (2017) (reporting that only 0.7% of civil cases in federal court end in a jury trial and only 2% of federal criminal cases).

202 See, e.g., MANUAL OF MODEL CIVIL JURY INSTRUCTIONS FOR THE DISTRICT COURTS OF THE NINTH CIRCUIT § 1.2 (2025) (“To [the] facts you will apply the law as I give it to you. You must follow the law as I give it to you whether you agree with it or not.”); *United States v. Gaudin*, 515 U.S. 506, 513 (1995).

203 See FED. R. CIV. P. 56(a) (“The court shall grant summary judgment if the movant shows that there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law.”).

204 See Haley N. Proctor, *Law, Fact, Form, and Function*, 94 U. CHI. L. REV. (forthcoming 2027) (manuscript at 27), <https://ssrn.com/abstract=5376153> [<https://perma.cc/YA3D-RV2K>].

205 For the taxonomy, see Frank H. Easterbrook, *Presidential Review*, 40 CASE W. RES. L. REV. 905, 927 (1989) (explaining that dispute resolution is the *raison d'être* of the courts and constitutional decisions are the byproduct).

206 Susan Yorke, *Jury Nullification Instructions as Structural Error*, 95 WASH. L. REV. 1441, 1445–56 (2020) (“[I]nstructions that affirmatively inform the jury of its power to nullify are certainly not required and are distinctly disfavored.”); see also Nancy J. King, *Jury Nullification in*

To understand the full role of the jury, one must (again) recover the eighteenth-century belief that the gap between law and facts was filled by judgment.²⁰⁷ Judgment linked the law—at whatever abstraction it was defined—to facts, without causing the law to become so precise that it met every set of facts.²⁰⁸ Knowing the law and knowing the facts was not sufficient to know the outcome. And the jury made that judgment; the jury was trusted over the judge for this task.

Yet, oddly, the jury right was relatively narrow, at least when comparing the requirement to the purported importance of the jury. If the jury was of such importance that it formed the basis for ordered liberty, the carveouts for equity and admiralty, as well as for some prerogative writs pursued in courts of law, present some tension.²⁰⁹ Harmonizing the importance of juries and their limited scope is not possible here. Regardless, the colonists considered the jury to be essential in criminal cases and actions at common law.

The colonists' right to jury trial was not directly attacked; instead, the expanding jurisdiction of admiralty courts had the effect of minimizing the jury trial.²¹⁰ The Sugar Act of 1764 and the Stamp Act of 1765 both expanded admiralty courts,²¹¹ thus reducing the role of the jury.²¹² Early colonial declarations had objected to these expansions.²¹³ But the minimization of jury trials persisted and angered the colonists enough to make the list of grievances. They objected to the King having “depriv[ed] [them] in many cases, of the benefits of Trial by Jury.”²¹⁴

the United States, in OXFORD HANDBOOK TOPICS IN CRIMINOLOGY AND CRIMINAL JUSTICE (2012).

207 See Proctor, *supra* note 203 (manuscript at 11–15).

208 See *id.* (manuscript at 23–24).

209 See THE FEDERALIST NO. 83, *supra* note 18, at 499 (Alexander Hamilton) (“Add to [the cases not affected by the civil jury right] that admiralty causes, and almost all those which are of equity jurisdiction, are determinable under our own government without the intervention of a jury”); Samuel L. Bray, *Equity, Law, and the Seventh Amendment*, 100 TEX. L. REV. 467, 471 & n.22, 500 (2022); *cf.* SEC v. Jarkesy, 144 S. Ct. 2117, 2142 (2024) (Gorsuch, J., concurring) (proposing, in the context of the importance of the juries at the Founding, that “perhaps the lack of a jury” in “admiralty disputes” before vice-admiralty courts “would have proven unexceptional (as juries were not usually required in such cases then, nor are they today)”).

210 See *Jarkesy*, 144 S. Ct. at 2142–43 (Gorsuch, J., concurring).

211 The Sugar Act of 1764, 4 Geo. 3 c. 15, § 41 (Eng.); The Stamp Act of 1765, 5 Geo. 3 c. 12, §§ 57–58 (Eng.).

212 The colonists also objected because the judges were loyalists—indeed, Parliament removed causes from local juries precisely because they were “partial to American (colonial) interests.” See FRIEDMAN, *supra* note 55, at 52–53.

213 See DECLARATION OF RIGHTS AND GRIEVANCES paras. 8–9, 15 (1765), *reprinted by* Yale L. Sch.: Avalon Project, https://avalon.law.yale.edu/18th_century/resolu65.asp [https://perma.cc/8HRA-6W9N]; DECLARATION AND RESOLVES OF THE FIRST CONTINENTAL CONGRESS paras. 1, 20–21 (1774), *reprinted by* Yale L. Sch.: Avalon Project, https://avalon.law.yale.edu/18th_century/resolves.asp [https://perma.cc/U3GA-YJY2].

214 THE DECLARATION OF INDEPENDENCE para. 20 (U.S. 1776). Two other grievances—that British officers were taken from the colonies to be tried before English juries and that colonists

In the ratification debates, the Anti-Federalists were concerned that the proposed constitution protected juries only in criminal trials and not in civil trials. Brutus, for example, argued that the federal judiciary might expand to swallow up the state judiciaries, thereby leaving civil trials in the past.²¹⁵ The Federal Farmer was concerned that, even if civil jury trials were held in federal court, they might be held in faraway places with foreign juries.²¹⁶ And even for those jury trials that were held in the proper locale, the Supreme Court's jurisdiction over all questions, law and fact, suggested to Anti-Federalists that the Supreme Court could reexamine jury verdicts.²¹⁷ If the Supreme Court could annul unfavorable or unpopular jury verdicts, then the jury trial right would have meant little. Federalist responses primarily focused on the variance among states in the scope of civil juries, which would have made a national standard difficult, as well as the more general argument that Congress would not in fact restrict civil juries.²¹⁸ However, the First Congress acquiesced and proposed rights-focused amendments to address Anti-Federalist concerns about the original Constitution.

The Seventh Amendment partially addressed these civil-jury concerns. That Amendment applies to "Suits at common law" of an appreciable value; in those suits, "the right of trial by jury [was to] be preserved."²¹⁹ This part delineates the scope—actions at common law, as opposed to equity, admiralty, or other proceedings (such as some prerogative writs)—in a way that was consistent with previous English practice.²²⁰ More modern Supreme Court decisions have repeatedly concluded that this common law anchor was frozen in amber in 1791—cases that would have been brought at common law (and thus amenable to a jury trial) fall within the Seventh Amendment,

accused of certain crimes could be taken there for trial as well, *id.* paras. 17, 21—related to the jury right. The Constitution responded to these two grievances by requiring criminal cases to be tried in "the State and district wherein the crime shall have been committed." U.S. CONST. amend. VI. The right to a criminal jury trial operates differently from the right to a civil jury trial, to be sure. But the civil jury demonstrates many of the same themes and is more relevant to federal-courts formalism, so I focus on that throughline here. However, the formalist return appears to apply to criminal procedure as well. *See, e.g.,* Apprendi v. New Jersey, 530 U.S. 466 (2000); *see also* Ramos v. Louisiana, 140 S. Ct. 1390 (2020).

215 *See Essays of Brutus (No. XI)* (Jan. 31, 1788), in 2 THE COMPLETE ANTI-FEDERALIST, *supra* note 197, at 417.

216 *See Letters from the Federal Farmer (No. 15)*, *supra* note 197, at 320.

217 *See id.* at 319 ("I think . . . that the judges in all final questions . . . shall have complete jurisdiction, to consider the whole cause, to examine the facts, and on a general view of them, and on principles of [law] . . . to give judgment.").

218 *See, e.g.,* THE FEDERALIST NO. 83, *supra* note 18, at 501–03 (Alexander Hamilton).

219 U.S. CONST. amend. VII.

220 Tull v. United States, 481 U.S. 412, 417 (1987) ("Prior to the Amendment's adoption, a jury trial was customary in suits brought in the English law courts. In contrast, those actions that are analogous to 18th-century cases tried in courts of equity or admiralty do not require a jury trial." (emphasis omitted)); Bray, *supra* note 208, at 471 n.22 ("The relationship between the jury and the prerogative writs . . . is more complex than it may seem.").

while those that would not have are excluded.²²¹ Although the Amendment does not specify the venue, like Article III does for criminal trials, it does draw on the body of common law,²²² which dictates the required number of jurors²²³ and the vote threshold.²²⁴

The second part of the Seventh Amendment clarifies the appellate standard of review in appeals from jury trials. “[N]o fact tried by a jury, shall be otherwise re-examined in any Court of the United States, than according to the rules of the common law.”²²⁵ Again, we see the Framers of the Bill of Rights anchoring the jury right to that of the common law. This reference might be considered dynamic or static. It is dynamic if the common law referenced is the common law at the time of the appeal.²²⁶ This interpretation allows for continued common law evolution, but it creates the potential that the common law evolves in a way that undermines the provision altogether—for example, if the common law evolved to allow a jury’s factual finding to be reexamined if the appellate court believes simply that the jury might have made a mistake. Conversely, the reference might be static if the “rules of the common law”²²⁷ are those that existed in 1791.²²⁸ Like the historical test for determining whether a suit is one “at common law,”²²⁹ one might understand the Seventh Amendment as foreclosing any more extensive review than was allowed at common law in 1791.

The jury played an important role in providing accountability in the early Republic. When the Federalist Congress and President John Adams enacted and prosecuted violations of the Alien and Sedition Acts,²³⁰ grand juries repeatedly refused to indict, widely understood to be a defiant act of nullification,²³¹ and prosecutors avoided prosecutions where the juries would

221 See, e.g., Jay Tidmarsh, *The English Fire Courts and the American Right to Civil Jury Trial*, 83 U. CHI. L. REV. 1893, 1896–97 (2016); *Chauffeurs, Teamsters & Helpers Loc. No. 391 v. Terry*, 494 U.S. 558, 564–65 (1990).

222 See *Balt. & Carolina Line, Inc. v. Redman*, 295 U.S. 654, 657 (1935) (“The right of trial by jury thus preserved is the right which existed under the English common law when the Amendment was adopted.”).

223 See *Colgrove v. Battin*, 413 U.S. 149, 157 (1973) (“Our inquiry turns, then, to whether a jury of 12 is of the substance of the common-law right of trial by jury.”).

224 See *Am. Publ’g Co. v. Fisher*, 166 U.S. 464, 468 (1897) (“Now unanimity was one of the peculiar and essential features of trial by jury at the common law. . . . [I]t is clear that a statute which destroys this substantial and essential feature thereof is one abridging the right.”).

225 U.S. CONST. amend. VII.

226 See Lindley, *supra* note 24, at 313 (citing Caleb Nelson, *The Persistence of General Law*, 106 COLUM. L. REV. 503, 531 n.145, 548 n.216 (2006)).

227 U.S. CONST. amend. VII.

228 Lindley, *supra* note 24, at 313.

229 U.S. CONST. amend. VII.

230 Naturalization Act, ch. 54, 1 Stat. 566 (1798); Alien Act, ch. 58, 1 Stat. 570 (1798); Alien Enemies Act, ch. 66, 1 Stat. 577 (1798); Sedition Act, ch. 74, 1 Stat. 596 (1798).

231 See Roger A. Fairfax, Jr., *Grand Jury Discretion and Constitutional Design*, 93 CORNELL L. REV. 703, 722 (2008).

be opposed to the Acts.²³² Further, when northerners resisted slave catchers acting under the Fugitive Slave Act of 1850,²³³ juries refused to convict the resisters because the jurors believed the slave catchers to be engaged in an unlawful and immoral activity.²³⁴

In addition to the accountability provided by the jury, the judiciary was also accountable to the political branches indirectly through appointment and directly, but imperfectly, through impeachment. The Crown alone appointed judges, without direct parliamentary oversight.²³⁵ The Constitution modified that structure by requiring advice and consent of the Senate, inserting the legislature (or part of it) into the process.²³⁶ The President and Senate have long used the appointment process to further their political ends, presumably the political ends that they were elected to further.²³⁷ As members of the political parties have become more ideologically homogeneous, the selection process more precisely identifies ideological allies and perhaps not coincidentally has become more cantankerous.²³⁸

Even after appointment, removal of judges is also available by way of impeachment.²³⁹ Impeachment, however, is a blunt and often insufficient instrument. Impeachment requires the majority of the House of Representatives and removal two-thirds of the Senate.²⁴⁰ In England, parliamentary removal—authorized by the Act of Settlement as an address of Parliament—was generally aimed to abuse of power or high crimes and misdemeanors.²⁴¹ The United States briefly experimented with a broader view of impeachment that would have included poor, sloppy, and incorrect opinions, but the at-

232 See Eric A. Posner, *Political Trials in Domestic and International Law*, 55 DUKE L.J. 75, 124 (2005).

233 Fugitive Slave Act of 1850, ch. 60, 9 Stat. 462.

234 See H. Robert Baker, *The Fugitive Slave Clause and the Antebellum Constitution*, 30 L. & HIST. REV. 1133, 1167 (2012) (“Despite lengthy lectures on the subject of treason and the nature of the Compromise of 1850, juries uniformly refused to convict rescuers on that count, and the government gave up such attempts.”); see also Gene Schaerr & Jed Brinton, *Business and Jury Trials: The Framers’ Vision Versus Modern Reality*, 71 OHIO ST. L.J. 1055, 1064 (2010) (citing LYSANDER SPOONER, AN ESSAY ON THE TRIAL BY JURY 8 n.1 (Bos., John P. Jewett & Co. 1852)).

235 See VANDERBILT, *supra* note 20, at 32.

236 U.S. CONST. art. II, § 2, cl. 2.

237 See, e.g., STUART BANNER, *THE MOST POWERFUL COURT IN THE WORLD: A HISTORY OF THE SUPREME COURT OF THE UNITED STATES* 332–38 (2024).

238 See *id.* at 498–507.

239 U.S. CONST. art. I, § 2, cl. 5; *id.* art. I, § 3, cls. 6–7. Some recent scholarship has argued in various ways that impeachment is not the only way to remove judges because Congress can define the standards for “good behavior” on which judges rely for their continued tenure. See, e.g., Saikrishna Prakash & Steven D. Smith, *How to Remove a Federal Judge*, 116 YALE L.J. 72 (2006). But the conventional wisdom has remained, and probably for good reason. See Martin H. Redish, Response, *Good Behavior, Judicial Independence, and the Foundations of American Constitutionalism*, 116 YALE L.J. 139 (2006); James E. Pfander, *Removing Federal Judges*, 74 U. CHI. L. REV. 1227 (2007).

240 See U.S. CONST. art. I, § 2, cl. 5; *id.* art. I, § 3, cl. 6.

241 See Prakash & Smith, *supra* note 238, at 97–100.

tempted impeachment was defeated and the experiment has not been repeated.²⁴² This settlement provides only a minimal check on judges. A series of incorrect, even purposefully incorrect or obstructive, decisions might not be enough for impeachment. Lesser means are available, such as jurisdiction stripping and appropriations decisions, or executive refusal to enforce judgments issued without jurisdiction. But none of those lesser options provide full accountability, and all are sufficiently drastic that they are almost as unlikely to happen as impeachment.²⁴³

The role of the jury has evolved (or devolved) in the centuries since these early American controversies in at least three ways.²⁴⁴ First, the collapse of the distance between law and fact to remove judgment has minimized the role of the jury.²⁴⁵ Application of law to fact is a mechanical exercise—either because law is defined at a high level of specificity or because the law gives a reasonably clear right answer to each set of facts.²⁴⁶ If the facts are not in dispute, then a judge is much better positioned to determine the law, which resolves the case without need for a jury. And even where the facts are in dispute, perhaps a judge concludes that every reasonable juror would reach the same conclusion and moves to law application anyway.²⁴⁷

Consider, for example, *Scott v. Harris*.²⁴⁸ There, an individual had sued several police officers, alleging that although he was evading arrest, he was driving safely enough to make the officers' crash maneuver an unreasonable

242 See FRIEDMAN, *supra* note 55, at 130–31. For a thorough recounting of the failed impeachment of Justice Chase and the subsequent fallout, see David P. Currie, *The Constitution in Congress: The Most Endangered Branch, 1801–1805*, 33 WAKE FOREST L. REV. 219, 249–59 (1998). States also experimented (more successfully) with impeachment based on disagreement with judicial decisions, but they also appear to have largely abandoned a more aggressive approach to impeachment. See FRIEDMAN, *supra* note 55, at 129–30.

243 Cf. *Cannon v. Univ. of Chi.*, 441 U.S. 677, 704–05 (1979) (explaining that “the termination of federal financial support for institutions engaged in discriminatory practices . . . if merely an isolated violation has occurred” is too “severe” of a remedy to be effective).

244 Such a [d]evolution might not be constitutionally offensive if the Seventh Amendment merely referred to a common-law right the content of which could evolve after ratification. See generally Jonathan Green, *Some Traditional Questions About “History and Tradition”*, 102 NOTRE DAME L. REV. (forthcoming 2027); Jud Campbell, *Determining Rights*, 138 HARV. L. REV. 921 (2025). But see Ryan Snyder, *Against Living Originalism* (unpublished manuscript) (arguing against Campbell and Green that at the Founding codification of preexisting rights did lock in their content).

245 See Proctor, *supra* note 203 (manuscript at 33–36).

246 See *id.* (manuscript at 15–17).

247 Although traditionally summary judgment or judgments notwithstanding the verdict were not often used, judges used directed verdicts and new trials to police jury’s application of facts to law. Ann Woolhandler & Michael G. Collins, *The Article III Jury*, 87 VA. L. REV. 587, 591–92, 689 (2001) (“[I]t is something of an illusion to believe that overall federal judicial power over juries is stronger now than it was in the early Republic . . .”). Whether that difference raises any formal constitutional problems is a question for another day.

248 *Scott v. Harris*, 550 U.S. 372 (2007).

seizure.²⁴⁹ The Court held that because the only disputed facts were memorialized in video, a superficial dispute over what happened did not need to be credited or foreclose summary judgment.²⁵⁰ The Court then held that the driver was driving dangerously enough to make the officers' conduct reasonable.²⁵¹ The first holding—that a party's description of facts contradicted by video evidence cannot control—appears unobjectionable as a matter of Federal Rule of Civil Procedure 56, which governs summary judgment. But, once the facts were determined to be undisputed, the Court considered the question of reasonableness to be a purely legal question, left to the Court.²⁵² Yet, that fact-to-law application requires some degree of judgment, which was traditionally the role of the jury; indeed, “reasonableness” was a quintessential law-application jury question.²⁵³ On first blush, the case still could have been submitted to a jury to apply the undisputed facts to the law, although perhaps *Scott v. Harris* itself was an extreme enough case to warrant skipping the verdict even under the traditional approach.²⁵⁴

Second, the twentieth century found another way to take cases out of the “common law” and thus out of the Seventh Amendment altogether: administrative adjudication. As the number of agencies and the scope of their substantive reach proliferated, Congress increasingly tasked agencies with taking the first crack at adjudicating disputes, judicial review in Article III courts to follow.²⁵⁵ The Supreme Court early on held that this allocation of authority was permissible as a matter of Article III so long as the administrative tribunal handled questions of public, as opposed to private, rights or served as a mere adjunct to the Article III court, like magistrate judges and special masters.²⁵⁶ But when a company objected that a fine imposed by the Occupational Safety and Health Administration violated its right to a jury trial, the Court held in broad language that Congress's decision to funnel a

249 See *id.* at 374–76.

250 See *id.* at 380–81.

251 See *id.* at 383–86.

252 See *id.* at 381 n.8 (“[O]nce we have determined the relevant set of facts and drawn all inferences in favor of the nonmoving party[,] . . . the reasonableness of [the officer's] actions . . . is a pure question of law.”).

253 Akhil Reed Amar, *Fourth Amendment First Principles*, 107 HARV. L. REV. 757, 774 (1994) (“[R]easonableness was a classic jury question . . .”).

254 Cf. *R.R. Co. v. Stout*, 84 U.S. (17 Wall.) 657, 663 (1873) (explaining that in some “extreme cases” a judge can forgo the jury but that there is an “infinite” “range” of “intermediate cases” in which the jury is entitled to make the ultimate decision of “judgment and discretion . . . what is the deduction to be drawn from the undisputed facts”).

255 See, e.g., 29 U.S.C. § 160 (2018) (providing for initial adjudication by the National Labor Relations Board and authorizing both the Board and the sanctioned party to petition an Article III court for review).

256 See *Crowell v. Benson*, 285 U.S. 22, 50–54 (1932).

new dispute to an administrative agency did not violate Article III or the Seventh Amendment.²⁵⁷

Both steps are mistaken, and the Supreme Court has begun to correct this innovation. Although the public-private rights distinction is beyond the scope of this (or perhaps any) project,²⁵⁸ it is unlikely that imposition of fines involves solely public rights.²⁵⁹ Once in an Article III court, an action that would have been at common law in 1791 must have a jury today. But even without Article III, it would be curious (although not impossible) if the Seventh Amendment—enacted in response to concerns that Congress might abolish civil juries—allowed Congress to abolish juries by sending jury-amenable suits to administrative agencies. Rather, it seems likely that there would be limits on Congress’s ability to circumvent the judicial independence and civil-jury right the Constitution ensures, but again delineating those limits would require a better theory of anticircumvention rules.²⁶⁰ The Supreme Court recently held that the Securities and Exchange Commission could not impose a fine for a violation that approximated a common-law fraud claim.²⁶¹ However, the Court linked both key features of that proceeding—the monetary fine remedy and the common-law fraud analogue—leaving open both whether a purely monetary fine would trigger a jury trial and whether judicial review before enforcement prevents a violation of the jury-trial right.²⁶²

Finally, like Parliament’s attempts to undermine jury trials by expanding admiralty jurisdiction, judicial expansion of equity today threatens to do the same. Consider, for example, injunctions against government officials. At the Founding, suits against officials would be generally unavailable in equity, especially an injunction of criminal proceedings, and especially when

257 See *Atlas Roofing Co. v. Occupational Safety & Health Rev. Comm’n*, 430 U.S. 442, 455 (1977) (“Congress is not [prevented] by the Seventh Amendment . . . from committing some new types of litigation to administrative agencies . . . even if the Seventh Amendment would have required a jury where the adjudication of those rights is assigned to a federal court of law instead of an administrative agency.”).

258 See *SEC v. Jarkesy*, 144 S. Ct. 2117, 2133 (2024) (“Our opinions governing the public rights exception have not always spoken in precise terms. This is an ‘area of frequently arcane distinctions and confusing precedents.’” (quoting *Thomas v. Union Carbide Agric. Prods. Co.*, 473 U.S. 568, 583 (1985))).

259 One might think that consenting to some fines or penalties is a condition of being granted a privilege, such as the ability to trade securities on public exchanges, which means that proceedings to impose those fines or penalties concern public rights. See Baude, *supra* note 87, at 1545–47 (exploring this possibility in the context of the postal service). For an argument that such a scenario involves the unconstitutional conditions doctrine rather than the public rights doctrine, see Ilan Wurman, *Unconstitutional Conditions and the Doctrine of Public Rights*, 78 ADMIN L. REV. (forthcoming 2026), <https://ssrn.com/abstract=6051834> [<https://perma.cc/4CBA-4PYU>].

260 See *supra* text accompanying note 163.

261 See *Jarkesy*, 144 S. Ct. at 2139.

262 See *id.* at 2130.

unnecessary to protect an identified property interest.²⁶³ And equity could not interfere with criminal proceedings in part because damages actions were an adequate remedy at law and thus equity had no jurisdiction.²⁶⁴ The Supreme Court slowly chipped away at each barrier. It first loosened the rule that the prerogative writs were the proper channel to sue government officials.²⁶⁵ Then it allowed an injunction to enjoin criminal proceedings “where property rights will be destroyed.”²⁶⁶ And lastly, it extended the kind of property interest necessary to sustain a bill for injunction, rejecting any distinction “between an actual and direct interference with tangible property and the enjoining of state officers from enforcing an unconstitutional act.”²⁶⁷ In that same case, it abandoned the longstanding rule that subsequent damages actions were adequate remedies at law, reasoning that the threat of some punishments was so great that it was not practicable to expect anyone to violate the law.²⁶⁸ Later cases have extended this rule to essentially any penalty.²⁶⁹

To be sure, the relationship between pre-enforcement injunctive relief and a jury trial is contingent, but the larger point is about the expansion of equity. If the proper mode of pre-enforcement review is through one of the prerogative writs, the right to a jury trial would likely not exist.²⁷⁰ But the traditional prerogative writs would not be a substitute for all pre-enforcement injunctive actions; rather, often the adequate remedy at law would be a dam-

263 See *Hemsley v. Myers*, 45 F. 283, 286–90 (C.C.D. Kan. 1891); see also Andrew S. Oldham, Adam I. Steene & John W. Tienken, *The Ex Parte Young Cause of Action: A Riddle, Wrapped in a Mystery, Inside an Enigma*, 120 NW. L. REV. 1697, 1705, 1710–11 (2026).

264 In addition, the availability of an appeal from a conviction rendered any harm suffered repairable. See *Hemsley*, 45 F. at 286–90.

265 See *Osborn v. Bank of the U.S.*, 22 U.S. (9 Wheat.) 738, 838, 845 (1824) (allowing an injunction against an officer of Ohio); Oldham et al., *supra* note 263, at 1715–17.

266 *Dobbins v. Los Angeles*, 195 U.S. 223, 241 (1904); Oldham et al., *supra* note 263, at 1718.

267 See *Ex parte Young*, 209 U.S. 123, 167 (1908); see also Oldham et al., *supra* note 263, at 1718–19.

268 *Ex parte Young*, 209 U.S. at 147 (“[W]hen the penalties for disobedience are by fines so enormous and imprisonment so severe as to intimidate [plaintiffs] from resorting to the courts to test the validity of the legislation, the result is the same as if the law in terms prohibited [plaintiffs] from seeking judicial [review] . . .”).

269 See, e.g., 303 Creative LLC v. Elenis, 143 S. Ct. 2298, 2308–09 (2023) (an *Ex parte Young* suit to enjoin enforcement of prohibitions with fines of up to \$500). In addition, *Ex parte Young* suits are generally available to enjoin any kind of unlawful action by an official, departing even from *Young*’s application to threatened criminal proceedings. E.g., *Trump v. Cook*, No. 25A312, slip op. at 12–13 n.2 (U.S. June 29, 2026). See generally Mich. Corr. Org. v. Mich. Dep’t of Corr., 774 F.3d 895, 904–08 (6th Cir. 2014) (exploring the issue and criticizing the expansion of *Ex parte Young* beyond the antisuit injunction, or pre-enforcement review, context).

270 See *Bray*, *supra* note 208, at 471, 500. And in a criminal proceeding the jury-trial right would be that of the would-be criminal defendant (an *Ex parte Young* plaintiff). See *Patton v. United States*, 281 U.S. 276, 312 (1930) (Criminal defendants may waive their right to trial.), *overruled in part by Williams v. Florida*, 399 U.S. 78 (1970).

ages action—that is, a “Suit[] at common law”²⁷¹ complete with a jury trial. And perhaps this deprives the government-official defendant of a civil jury. In any event, the key here is not pre-enforcement review per se—which itself has been threatened by the Court’s return to traditional equity²⁷²—but rather the danger to the jury trial from the expansion of equity. As the dramatic expansion of the pre-enforcement injunction demonstrates, an expansion of equity renders many jury trials unnecessary. No criminal trial or action at law to test the legitimacy of official action is necessary if equity can pick the winner in advance. This dynamic offers perhaps another reason to tie modern equitable practice to what was available at the Founding.²⁷³

As to impeachment and appointment, perhaps the history teaches that the common wisdom is inconsistent with the kind of judicial accountability the Founders imagined. To be sure, the historical record suggests that impeachment would be improper for sincere yet incorrect judicial decisions.²⁷⁴ However, some judicial decisions are objectionable not (just) because they are incorrect, but because they do not pretend to be correct. Instead, they represent a theme of purposeful judicial defiance or the subordination of law to personal ends.²⁷⁵ Assuming perfect evidence, it is not clear that impeachment for such a judge would be improper. Of course, the recent (and hopefully short-lived) calls for judicial impeachment do not make this nuanced and careful argument.²⁷⁶ This unfortunate political reality might suggest that the existing equilibrium cabinining the role of impeachment is preferable.

271 U.S. CONST. amend. VII.

272 See *Trump v. CASA, Inc.*, 145 S. Ct. 2540, 2554 n.9 (2025) (explaining that *Ex parte Young* at least purported to “justif[y] its holding by reference” to traditional equity practice without blessing the specific reasoning); Brief for Respondent at 44–48, *Olivier v. City of Brandon*, No. 24-993 (Oct. 16, 2025) (calling into question the viability of *Ex parte Young* under an analysis that looked to available causes of action in 1871).

273 Cf. *CASA*, 145 S. Ct. at 2563 (Thomas, J., concurring) (going beyond the majority, which relied on the Judiciary Act of 1789, to question whether Article III allows courts to issue universal injunctions).

274 See Amy Howe, *Chief Justice Rebukes Trump’s Call for Judicial Impeachment*, SCOTUSBLOG (Mar. 18, 2025), <https://www.scotusblog.com/2025/03/chief-justice-rebukes-trumps-call-for-judicial-impeachment/> [<https://perma.cc/6JNQ-4F9U>] (“For more than two centuries, it has been established that impeachment is not an appropriate response to disagreement concerning a judicial decision. The normal appellate review process exists for that purpose.” (statement of Chief Justice Roberts)).

275 See, e.g., Linda Greenhouse, Opinion, *Dissenting Against the Supreme Court’s Rightward Shift*, N.Y. TIMES (Apr. 12, 2018) <https://www.nytimes.com/2018/04/12/opinion/supreme-court-right-shift.html> [<https://perma.cc/RKV3-ERF5>] (reporting that Judge Reinhardt, when asked “what the point . . . of issuing decision after decision that the Supreme Court would predictably overturn” was, said “They can’t catch ’em all.”).

276 E.g., H.R. Res. 858, 119th Cong. (2025) (proposed impeachment resolution for alleged mistake in signing off on nondisclosure orders relating to grand-jury approved subpoenas); A.G. Gancarski, *Charlie Crist Calls for Impeachment of Neil Gorsuch, Brett Kavanaugh After Abortion Decision*, FLA. POL. (June 25, 2022), <https://floridapolitics.com/archives/535227-impeach-crist-scotus/> [<https://perma.cc/HEN3-JER8>] (“Today’s ruling makes clear that Justices Gorsuch and

One popular criticism of the appointment process is that its political nature means that judges are regrettably selected for how well their political views line up with the President's, but this feature appears to be deeply traditional. Judicial selection (and retirement) has always been a political enterprise.²⁷⁷ And judges have always been selected with an eye toward how they might vote on the most controversial issues of the day.²⁷⁸ The differences between today's judicial selection process and that of a previous time might be caused more by party realignment than any change in attitude toward judges. When the parties were more ideologically diverse, there was less objection to any one judge, as the judge likely has some ideological compatibility with the opposition party.²⁷⁹ If this causal story is true, then perhaps the answer is not to make the current judicial-selection process less political, but rather use Article VI to change the process to align with current political dynamics.

CONCLUSION

Three of the key attributes of the ideal judiciary for the Framers are represented in both the Declaration and the Constitution. First, the judiciary should have robust independence. The colonists objected to the breach of the colonial judiciaries' independence from the Crown. Although the colonial assemblies had not given their judges the same independence that English judges had enjoyed since 1701, the Framers recognized that judicial independence was fragile, so they adopted the English protections—and then some. Above and beyond ordinary legislation, judicial independence is enshrined in a written constitution. Under Article III, the judicial branch is independent from and coordinate with the other branches, it has the full judicial power but only the judicial power, and its judges are guaranteed life tenure (during good behavior) and a nondiminished salary.

Second, the judiciary should also be dependent in some ways on the political branches. To effectively exercise its independent judicial power, the judiciary should have neither sword nor purse, nor if I might add to the Federalist, legislative power more broadly. Instead, federal courts are dependent on Congress for resources (both their own and resources for the executive), their jurisdiction, and the substantive law—including causes of action—that applies. The colonists in North Carolina had experienced the failure of the political branches, resulting in a collapse of the judicial system. They certainly did not want such a collapse to happen again, yet in their state constitutions and the federal Constitution, courts remained dependent on the polit-

Kavanaugh lied to Congress when they testified, under oath, that in their view *Roe v. Wade* was settled precedent,' [Charlie] Crist said.'').

277 See, e.g., BANNER, *supra* note 236, at 332–38.

278 See *id.* at 3.

279 See, e.g., *id.* at 25.

ical branches. Instead of restructuring in light of the Crown's failures, the Framers appear to have accepted that the political branches each had their own obligations of some kind to provide resources and enforce judgments.

Third, the judiciary must retain some measure of accountability. The colonists objected to the Crown's acquiescence in parliamentary acts enlarging the scope of vice-admiralty courts, which in turn limited the right to a civil jury trial. For the Framers, the civil jury was a means of democratic accountability. Although not every case involved a jury before or after the Constitution, proponents and opponents of the Constitution shared a belief in the jury's fundamental importance. Shortly after the Constitution was ratified, the civil jury right was one of the rights enumerated in the Bill of Rights. In addition, the Constitution provided for indirect accountability measures by interposing the Senate in the selection of judges and allowing Congress alone to remove them by way of impeachment.

The same basic questions about the role and value of the judiciary afflict us today. There are threats to judicial independence—legal, political, and practical—coming from other branches of government, legal scholars, and the judiciary itself. The judiciary sometimes rejects its dependence in favor of lawmaking, while Congress and the executive are increasingly pushing the boundaries of their obligations to federal courts. And the rise of in-house administrative adjudication and procedures that allow for final resolution before trial are to some degree contributing to the decline of the jury trial.

Through an embrace of what I call federal-courts formalism, the Court has begun to slowly return to the old, eighteenth-century conception of the judiciary. The Court has reasserted some of its independence. It recognizes its obligation to independently ascertain and apply the law, without extralegal deference to outside bodies—whether it be Congress, the President, the states, or the populace. On the other side of the bargain, the Court has taken notable steps toward not going beyond its own bailiwick. It pays more attention to the limits and requirements of its own jurisdiction, and it is increasingly refusing to make law. Finally, the Court has begun to limit the ability of Congress to avoid jury trials by enlarging administrative adjudication.

Both the anniversary of the Declaration and the undeniable and ongoing increase in formalism at the Court provide the opportunity to ask whether recreating the judiciary of eighteenth-century America is a desirable goal. It is not so obvious. Even if one accepts that the judiciary has exceeded its original bounds, and that this growth was normatively undesirable, there might well be too much water under the bridge. With a largely impotent Congress and Presidents of both political parties increasingly willing to push the boundaries of their power, our society has arguably become too habituated to the Court resolving our problems to turn back now. A recalcitrant Court might serve only to ensure that no institution will move the proverbial ball forward.

But there is also reason to think that a formalist Court can improve the state of the country. To be sure, reimagining the judiciary would need to be paired with other reforms and initiatives to address the broader societal concerns explored above. But we are seeing exactly that already. Several centers designed to promote civics and public engagement have been formed in the last few years.²⁸⁰ And there is reason to doubt how much work needs to be done as the public strongly believes that judges should not involve their own politics. Our own self-interest suggests that, at some point, each of us might need that independent and accountable judiciary that is supported by the political branches such that its judgments are effectual. Even at what appears to be the height of the executive branch's willingness to openly disobey court orders, the vast majority (eighty-one percent) of Americans wanted the executive to obey them.²⁸¹ Although it might be tempting to shape the judiciary to one's own political advantage whenever the preferred party is in power,²⁸² it would be shortsighted to say the least. For conservatives, the Warren Court could be child's play compared to what a fully unleashed progressive Court might look like.²⁸³ For liberals who think the Court is already an overtly conservative institution, the Court could be much, much more aggressively conservative both in its decisions and in its composition.²⁸⁴

At bottom, federal-courts formalism is a rejection of the modern, although perhaps more popular in academia,²⁸⁵ conception of the judiciary and

280 See *Center for American Civics*, ARIZ. ST. UNIV., <https://civics.asu.edu/about> (last visited Mar. 17, 2026); *Salmon P. Chase Center for Civics, Culture, and Society*, OHIO ST. UNIV., <https://chasecenter.osu.edu/about/about> [<https://perma.cc/KU44-3BG5>] (last visited Mar. 17, 2026); *Hamilton School for Classical and Civic Education*, UNIV. OF FLA., <https://hamilton.ufl.edu/> [<https://perma.cc/59R4-FNQD>] (last visited Mar. 17, 2026); *Institute of American Civics*, UNIV. OF TENN., <https://civics.utk.edu/> [<https://perma.cc/57QJ-G4UJ>] (last visited Mar. 17, 2026); *School of Civic Leadership*, UNIV. OF TEX. AT AUS., <https://civicleadership.utexas.edu/about/> [<https://perma.cc/3F3H-6DDB>] (last visited Mar. 17, 2026).

281 NBC NEWS, NBC NEWS DECISION DESK POLL RESULTS 5 (2025) <https://www.documentcloud.org/documents/25976234-nbc-news-decision-desk-poll-june-16-2025-topline/> [<https://perma.cc/LHC7-H54K>].

282 See, e.g., Mark Tushnet, *Abandoning Defensive Crouch Liberal Constitutionalism*, BALKINIZATION (May 6, 2016, 13:15 ET), <https://balkin.blogspot.com/2016/05/abandoning-defensive-crouch-liberal.html> [<https://perma.cc/K645-KDBP>]. But see William Baude, *Opinion, Conservatives, Don't Give Up on Your Principles or the Supreme Court*, N.Y. TIMES (July 9, 2020), <https://www.nytimes.com/2020/07/09/opinion/supreme-court-originalism-conservatism.html> [<https://perma.cc/2VTG-JLUU>].

283 See Troy Brown, *The Courts Will Never Save Us: It's Time to Stop Thinking They Ever Could*, THE [F]LAW (Jan. 12, 2024), <https://theflaw.org/articles/the-courts-will-never-save-us/> [<https://perma.cc/VFN2-CL4D>] (“[L]iberal constitutional scholars and thinkers steeped in the jurisprudence of the Warren Court seemingly unified around a single critique of the Warren Court: that it didn't go far enough.”).

284 See Glenn Harlan Reynolds, *A 'Living Constitution' on the Right?*, USA TODAY (Mar. 2, 2017, 03:18 ET), <https://www.usatoday.com/story/opinion/2017/03/02/constitution-neil-gorsuch-supreme-court-originalism-glenn-reynolds-column/98537030/> [<https://perma.cc/35H5-JYR8>].

285 But see *Trump v. CASA, Inc.*, 145 S. Ct. 2540, 2608 (2025) (Jackson, J., dissenting).

a return to the colonists' and Framers' conception. One cannot reject the current turn without at least grappling with the colonists' experiences and the Framers' design choices. Perhaps those experiences are out-of-date, not legally binding, or not suitable to modern society, but that case must be proven—and perhaps through constitutional amendment rather than constitutional say-so.